

Muluki Civil Procedure Code, 2017

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Chapter-1

Preliminary

1. Short Title and Commencement: (1) The name of this Act is "Amended by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2075.Muluki Civil Procedure Code, 2074".

(2) This Code shall commence from the 1st day of Bhadra of the year 2075. 2. Definitions: Unless the subject or context otherwise requires, in this Code,-

(a) "Court" means the Supreme Court, High Court or District Court, and the word also includes any other court, judicial body or officer authorized to conduct proceedings, hearings and disposal of a particular type of civil cases.

(b) "Law" means the law in force for the time being.

(c) "Endorsement of refusal to register" means an order made by the concerned officer on the face of a document that cannot be registered according to law, stating the ground and reason for non-registration, and signed by him, on the same document, any other part thereof, or on a separate paper.

(d) "Civil Case" means a case relating to legal rights, duties, status, position, family relationship or property other than those defined as criminal cases according to law, and the word also includes the following subjects and cases relating thereto:-

(1) Establishment of relationship or dissolution of relationship,

(2) Fees, remuneration, salary, allowance or wages,

(3) Share, inheritance, gift endowment, guardianship, curator, maternal and paternal authority, adopted son or adopted daughter,

(4) Any right or claim under any contract, quasi-contract or unjust enrichment,

(5) Right or claim relating to tort, quasi-tort or defective product,

(6) Easement,

(7) Compensation,

(8) Any other matter of a civil nature.

(e) "Judge" means an officer of the court conducting the proceedings, hearing and disposal of a case, and the word also includes an officer authorized to conduct proceedings, hearing and disposal of a civil case.

(f) "Appeal Petition" means a petition submitted to a higher court, together with one's own contention, for the correction of a decision of a lower court with which one is dissatisfied.

(g) "Written Statement" means a written reply submitted to the court accepting or denying the claim made in the plaint, and the word also includes a statement equivalent to a written statement.

(h) "Counterclaim" means a claim made by the defendant against the claim made by the plaintiff.

(i) "Defendant" means a person submitting a written statement, and the word also includes a person making a statement equivalent to a defendant or a person deemed a defendant by the court.

(j) "Plaint" means a complaint, suit, claim or petition submitted demanding the establishment of one's right, interest or concern in any matter or the enforcement of a claim, and the word also includes a statement equivalent to a plaint or a counterclaim mentioned in the written statement.

(k) "Record (Misil)" means the file relating to a case, comprising the plaint, written statement, appeal petition, petition and evidence and other documents collected and kept in the court.

(l) "Case" means a civil case.

(m) "Summons" means a notice or summons issued by the court in the name of any person in the course of a case.

(n) "Person" means a natural person, and the word also includes a legal person.

(o) "Plaintiff" means a person filing a plaint.

(p) "Local Level" means a Rural Municipality or Municipality.

(q) "Property" means movable or immovable property.

3. Matters Written in Separate Law Not Affected: (1) Matters relating to procedures written in separate laws enacted for specific subjects shall be according to that law, and the provisions of this Code shall not have any effect on such matters.

(2) Matters of procedure not written in the law referred to in Sub-section (1) shall be as written in this Code.
Chapter-2

General Principles of Civil Procedure Law

4. Principles to be Observed in Civil Cases: While conducting proceedings, hearing and disposal of a case, the Court shall generally observe the principles and provisions mentioned in this Chapter. 5. Hearing to be in Open Court: Unless otherwise provided by law or unless the Court otherwise orders on the basis of an application made by a party to the case, the proceedings, hearing and disposal of a case shall be in open court. 6. Hearing to be by Competent Court: The proceedings, hearing and disposal of a case shall be only by a court competent according to law. 7. Question of Right Only to be Determined by Court: (1) If a question of right arises in any matter, such question shall be determined only by a regular court. Explanation: For the purpose of this Code, "regular court" means the District Court, High Court or Supreme Court.

(2) If, during the proceedings of a case pending in a court or body other than a regular court, it appears that the proceedings, hearing and disposal on other matters can be done only after the determination of a question of right, the concerned officer shall order the parties to get the question of right determined by the regular court. 8. Disputes Relating to Legal Status Only to be Determined by Regular Court: Disputes relating to the establishment of relationship, dissolution of relationship or legal status of any person shall be determined only by a regular court. 9.

Status of Parties to be Equal: (1) While conducting proceedings, hearing and disposal of a case, the status of the parties to the case shall remain equal. (2) The Court shall treat each party to the case equally. (3) Amended by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2075. If, in the course of the proceedings of a case, the Government of Nepal, Provincial Government or Local Level, or any body thereof,

or any legal person appears before the Court as a plaintiff or defendant, unless otherwise provided by law or unless the Court otherwise orders, Amended by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2075. the Government of Nepal, Provincial Government or Local Level, or any body thereof, or any legal person shall not be entitled to claim a separate status, facility, concession, immunity or exemption during the proceedings of the case. 10. Must have Locus Standi to Make a Claim: A person wishing to file a plaint in a court shall mention in the plaint that he has a right to take any claim or that he has a lawful interest or concern in relation to such claim, and shall show that he has locus standi. 11. Jurisdiction not to be Void: A court or officer shall be assigned jurisdiction according to law for the diary, proceedings, hearing and disposal of any case. 12. Not to Refuse to Decide: (1) A Judge shall not refuse to decide a case on the ground that the law is insufficient or unclear. (2) In the situation referred to in Sub-section (1), the Judge shall decide on the basis of accepted principles of law and justice. 13. Opportunity to be Given for Compromise or Mediation: (1) Before passing a judgment on any case, the Court shall give an opportunity to the parties to compromise or to adopt the process of mediation and compromise in such case. (2) When giving an opportunity pursuant to Sub-section (1), if the parties agree to compromise or to adopt the process of mediation, a case pending at any level may be compromised or may be caused to be compromised by adopting the process of mediation. 14.

Principle of Res Judicata to be Followed: After a case has been filed and a judgment has been passed once, the Court shall not hear and pass judgment more than once on the same subject matter between the same plaintiff and defendant, except in the case of an appeal filed or a matter where a compromise has not been implemented. 15. Right to Appeal: A party dissatisfied with a case that has been heard in initial proceedings and disposed of by a judgment or final order by any court shall have the right to appeal to the relevant court hearing appeals according to law. Chapter-3 Provisions Relating to Jurisdiction 16. Must have Jurisdiction: (1) Any court must have jurisdiction according to law to conduct proceedings, hearing and disposal of a case. (2) Proceedings, hearings, orders or decisions made by a court without jurisdiction in the course of a case shall be void. (3) While deciding, the court shall specify in the judgment under which law it has jurisdiction. 17. Jurisdiction of Courts: The power to conduct initial proceedings, hearing and disposal of a case, to hear appeals against it, to retry a case or to review shall be with the respective court as provided by law. 18. Jurisdiction of District Court: (1) The power to conduct proceedings, hearing and disposal of any matter relating to immovable property, which by the nature of the subject matter requires local inspection, and cases relating to easement, canal, boundary, and cases where the plaint requires inspection of a house, land or property, shall be with the District Court of the district where such house, land or property is situated. (2) In addition to the cases mentioned in Sub-section (1), the power to conduct proceedings, hearing and disposal of the following cases shall also be with the District Court of the district where such property is situated:- (a) Involving questions of rent, crops or proceeds, or relating to ownership, possession or right of property, (b) Relating to attachment or release of immovable property, (c) Relating to partition of immovable property, (d) Relating to mortgaging, pledging, possessing or using immovable property, (e) Relating to any concern or condition over immovable property, (f) Relating to compensation connected with immovable property. (3) Notwithstanding anything written in Sub-section (1) or (2), in a share (partition) case, the District Court in which the plaint is filed among the districts where the plaintiff or the defendant is located shall have the power to conduct proceedings, hearing and disposal of the case. 19.

Jurisdiction of District Court where Defendant Resides or Act Occurred: (1) In cases other than those written in Section 18, the District Court in which the plaint is filed among the District Courts of the district where the defendant resides or the act occurred shall have the power to hear, conduct proceedings and dispose of such case. Explanation: For the purpose of this Section, "district where the defendant resides" means the district

where the defendant lives, and the word also includes, in the case of a legal person, the district where its principal office is situated. (2) If the plaintiff and the defendant have conducted a transaction in a district other than the district where they reside, the District Court in which the plaint is filed among the District Court of the district where such transaction was conducted or where the plaintiff or defendant is located shall have the power to hear, conduct proceedings and dispose of such case. (3) In the situation under Sub-section (1), if there are more than two defendants in any case, the plaint shall be filed in the District Court of the district where the largest number of defendants reside. Provided that if an equal number of defendants reside in more than one district, the case may be filed in any District Court of the district where such defendants reside. 20. Jurisdiction of Cases Relating to Transactions Abroad: (1) Notwithstanding anything written in Sections 18 and 19, if it is mentioned in a deed or contract relating to a transaction, dealing or agreement done abroad that a case may be filed in any court of Nepal, the District Court of the district where the plaintiff or defendant resides shall have the power to conduct proceedings, hearing and disposal of such case. (2) Notwithstanding anything written in Sub-section (1), if it is mentioned in a deed relating to a transaction, dealing or agreement that a case may be filed in a particular District Court of Nepal, that court shall have the power to conduct proceedings, hearing and disposal of such case. 21. Jurisdiction of Cases Relating to Transactions Within Nepali Aircraft or Ship: While an aircraft or ship registered in Nepal according to law is outside Nepal, the jurisdiction to conduct proceedings, hearing and disposal of a case relating to any transaction conducted within such aircraft or ship, subject to Section 20, shall be with a court of Nepal. 22.

Jurisdiction of Higher Court: If a case concerning any matter falling within the jurisdiction of both a lower level court and a higher level court according to law is filed in both the lower and higher level courts, the higher level court shall have the power to conduct proceedings, hearing and disposal of the case. 23. Jurisdiction of Court: If a case on the same subject matter is filed in both a court and another judicial body, the regular court shall have the power to conduct proceedings, hearing and disposal of such case. 24. Jurisdiction of Cases where Public Servant is Plaintiff or Defendant: (1) Notwithstanding anything written elsewhere in this Chapter, when a public servant files a plaint against any person in an official capacity or when a person files a plaint against a public servant making him a defendant in an official capacity, such plaint must be filed in the District Court of the district where such public servant is currently serving or where the plaintiff is located. (2) When a public servant has to submit a plaint or written statement in his private capacity, he may register it in the District Court of the district where he is serving. (3) If any plaint or written statement is registered pursuant to Sub-section (2), that court shall send such plaint or written statement to the relevant District Court. (4) If any plaint or written statement is received pursuant to Sub-section (3), the relevant District Court shall conduct necessary proceedings, hearing and disposal according to law. 25. Jurisdiction of Relevant District Court: (1) If no court or officer is assigned jurisdiction according to law to conduct proceedings, hearing and disposal of any case, the relevant District Court shall have the power to conduct proceedings, hearing and disposal of such case. (2) If a court, body or officer is authorized according to law to conduct proceedings, hearing and disposal of a case but such court or body is not constituted or an officer is not assigned, until such court or body is constituted or an officer is assigned, the relevant District Court shall also have the power to conduct proceedings, hearing and disposal of such case. 26.

Only One Court's Plaint to Stand: (1) If a person has registered different plaints on the same subject matter in different courts, with the consent of both parties to the case, the plaint of any one court shall be kept standing and information thereof shall be given to the other court. (2) If information is received from any court pursuant to Sub-section (1) that the plaint registered in that court is to stand or be dismissed, the court receiving such information shall keep or dismiss the plaint in its court accordingly. (3) If the parties cannot agree pursuant to Sub-section (1), the plaint registered in the court where the plaint was first registered shall be kept standing

and the plaint in the other court shall be dismissed. 27. Jurisdiction of Court Hearing Appeal: When a case is filed in any court pursuant to this Chapter and its proceedings, hearing and disposal are completed, the court hearing appeals against the order or judgment made by that court shall have the power to conduct appeal proceedings, hearing and disposal according to law. Chapter-4 Provisions Relating to Procedure for Preparing Deeds 28. Formalities to be Fulfilled when Preparing a Deed: (1) When preparing a deed, the subject matter for which the deed is being prepared shall be clearly stated, and it shall be prepared by printing, typing or handwriting without any error or alteration, and the party concerned relating to such deed shall sign/thumbprint it. Explanation: For the purpose of this Chapter,- (a) "Deed" means the following deeds:- (1) All kinds of deeds of transaction, property transfer or pledging/mortgaging made in domestic dealings, (2) Deed relating to adopted son or adopted daughter, (3) Contract, (4) Deed of power of attorney, Power of Attorney (Akhityarnama), Consent letter (Manjurinama) or other papers of similar nature, (5) Any deed to be submitted to a government office or corporate body, (6) Any kind of deed including plaint, written statement, appeal petition, petition, application submitted to a court, (7) Deed issued by a government office or corporate body, (8) Any other deed that creates or does not create a legal right or obligation. (b) "Party concerned" means a person who is responsible to sign/thumbprint the deed based on its contents.

Amended by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2075.(c) "Government Office" means the Office of the President, Office of the Vice-President, Supreme Court, Federal Parliament, Provincial Assembly, Office of the Government of Nepal, Office of the Provincial Government, Office of the Local Level, Office of the Provincial Chief, Constitutional Body or its office, Court, Office of the Attorney General, Nepali Army, Nepal Police, Armed Police Force, Nepal, and all other government offices of the Federal, Provincial and Local Levels.

(d) "Corporate Body" means an institution wholly or partially owned by the Government of Nepal or Provincial Government or Local Level, an institution established according to law, company or trust, and the word also includes a university, college or school.

(2) While preparing deeds pursuant to Sub-section (1), if there is an error due to a reason or if the content differs and needs correction, the sentence, word, number or letter that needs to be corrected shall be crossed out or marked so that the difference is visible, and the correct sentence, word, number or letter shall be written immediately above or below the crossed-out place, and the party concerned shall sign/thumbprint at each place where it is crossed out or corrected.

(3) Notwithstanding anything written in Sub-section (2), if a deed cannot be corrected by alteration, or if even if it can be corrected, the corrected content causes ambiguity or doubt, or if it is a deed that must be certified according to law, another separate deed shall be prepared instead of such deed.

(4) When mentioning any amount in a deed pursuant to Sub-section (1), it shall be mentioned in both figures and words.

(5) If there is a difference in figures and words while stating any amount pursuant to Sub-section (4), the content written in words shall be valid. 29.

Formalities to be Fulfilled when Signing/Thumbprinting: (1) When signing/thumbprinting a deed or causing it to be done, a literate person shall write his name and Amended by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2075.affix his signature, and an illiterate person shall affix a thumbprint. (2) Notwithstanding anything written in Sub-section (1), when signing/thumbprinting the following deeds, the thumbprints of both thumbs and, for literate persons, the fact of having affixed their Amended by the Act to

Amend Some Nepal Acts Relating to the Muluki Code, 2075. signature shall be certified by signing/thumbprinting:- (a) Deed relating to property for which one's right has been relinquished or which has been pledged/mortgaged, (b) Consent letter (Manjurnama) or Power of Attorney (Akhityarnama) given to a government office or corporate body, (c) Exchange deed (Sattapattapatra), partition deed (Bandapatra) between co-sharers, deed of renunciation of share (Ansha chhodapatra) or receipt of share (Ansha bujheko bharapai), (d) Deed of separation or reunion of family (Mano chhutyeko or mano jodiyeko), (e) Deed relating to adopted son or adopted daughter, (f) Separate receipt given for repayment of loan or giving of loan without an endorsement of refusal to register on the face of the deed, (g) Deeds including Bhogabandhaki, Drishtibandhaki, Likhbandhaki for loan given or taken, Promissory note (Bhakhapatra), Guarantee bond (Jamanipatra), Undertaking (Kabultiyatnama), (h) Contract for taking or giving deposit (Naso dharauti), (i) Deed of Kapali Tamasuk (a type of informal loan document). (3) When signing/thumbprinting pursuant to Sub-section (1), in the case of a deed issued by a government office or corporate body, the concerned officer shall sign by mentioning his name and Amended by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2075. post, affix the office seal, and the date of issuance of the deed shall be mentioned in such deed. 30. Formalities to be Fulfilled when Affixing Signature: (1) A literate person shall write his full name, surname and permanent address on the deed and affix his signature. (2) When signing pursuant to Sub-section (1), a full signature shall be affixed at the main place where Amended by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2075. signature is required, and a short form signature may be affixed at other places. (3) When signing/thumbprinting pursuant to Sub-section (2), if the deed on the same subject matter consists of more than one page, the party concerned required to Amended by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2075. sign at the top and bottom of each page shall sign/thumbprint in such a way that no content can be added or removed from such deed. 31.

Formalities to be Fulfilled when Affixing Thumbprint: (1) When affixing or causing to affix a thumbprint on a deed, the thumbprint of the right thumb of the person affixing such thumbprint shall be affixed. (2) When affixing or causing to affix a thumbprint pursuant to Sub-section (1), if a person does not have a right thumb, or even if he has one but the lines of the shell whorl are not clearly visible, the thumbprint of the left thumb, and if both thumbs are absent or even if present but the lines of the shell whorl are not clearly visible, the thumbprint of any other finger of the right or left hand with clearly visible lines shall be affixed or caused to be affixed. (3) In the case of a deed where thumbprints of both thumbs are required to be affixed or caused to be affixed, if the party concerned does not have a thumb on any hand, or even if present but the lines of the shell whorl are not clearly visible, the thumbprint of any other finger of that same hand with clearly visible lines and the thumbprint of the hand with clearly visible shell whorl lines shall be affixed or caused to be affixed. (4) When affixing or causing to affix a thumbprint pursuant to Sub-section (1), if a party concerned does not have both thumbs, or even if present but the lines of the shell whorl are not clearly visible, thumbprints of any one finger each of both hands with clearly visible lines shall be affixed or caused to be affixed. (5) When affixing or causing to affix a thumbprint pursuant to this Section, if a party concerned does not have any finger on the hand, or even if present but the lines of the shell whorl are not clearly visible, the thumbprint of any one or two fingers as necessary, even of the same hand, with clearly visible lines shall be affixed or caused to be affixed. (6) When affixing or causing to affix a thumbprint pursuant to this Section, if a party concerned does not have any finger on the hand, or even if present but the lines of the shell whorl are not clearly visible, the signature/thumbprint of such party concerned shall be caused to be made pursuant to Section 33. (7) When affixing or causing to affix a thumbprint pursuant to this Section, except where thumbprints of one or both thumbs have been caused to be affixed according to law, when affixing or causing to affix a thumbprint of any other finger, the reason why the thumb is absent or its shell whorl lines are not clearly visible due to which the

thumbprint of another finger is affixed or caused to be affixed shall be mentioned in the relevant deed.

32. Must Affix or Cause to Affix Signature: If a thumbprint of the party concerned cannot be affixed due to the situation under Section 31 in a deed where both a thumbprint and a signature are required, and if the party concerned can sign, he shall affix or cause to affix only his signature after stating this fact. 33. Must Cause Guardian or Curator to Sign/Thumbprint Deed: In the case of a party concerned who cannot sign pursuant to Section 30 and whose thumbprint also cannot be affixed due to the situation under Section 31, for a deed that requires the party concerned to sign/thumbprint, the guardian or curator of such party concerned shall be kept present and his signature/thumbprint shall be affixed or caused to be affixed. 34. Procedure when a Person Unable to Sign/Thumbprint Makes a Deed: When only the signature of the party concerned is affixed on the deed pursuant to Section 32, or when the signature/thumbprint of the guardian or curator of the party concerned is affixed on his behalf pursuant to Section 33, the reason for that shall be mentioned at the top of the deed and the concerned officer shall certify such deed. 35. Procedure when Making a Deed on Behalf of a Person in a Special Condition: (1) Notwithstanding anything else written in this Chapter, when causing any deed to be made on behalf of a blind or mute person, if such person has a guardian or curator, he shall also be kept present and the deed shall be prepared according to what such person expresses or indicates, and the signature/thumbprint of the guardian or curator shall also be affixed on such deed.

(2) When causing a deed to be made on behalf of a minor or a person not of sound mind, if there is a guardian or curator, he shall also be kept present and his signature/thumbprint shall also be affixed.

(3) Notwithstanding anything else written in this Section, when causing a person who cannot read to sign/thumbprint a deed, if such person so desires, it shall be done in the presence of a person chosen by him, and the fact that the person present in such presence was chosen by him shall also be stated in the same deed and the signature/thumbprint shall be affixed. 36.

Deed to be Valid: (1) If a signature or thumbprint is affixed pursuant to this Chapter, subject to the law, such deed shall be valid for any purpose and shall be enforceable according to law. (2) Notwithstanding anything written in Sub-section (1), except for contracts and agreements under sealed tenders published by way of public notice and transactions conducted with banks and financial institutions through exchange instruments, deeds prepared within Nepal in domestic dealings involving an amount exceeding fifty thousand rupees for which signature or thumbprint is required according to this Chapter, or an amount not less than that amount determined by the Government of Nepal by publishing a notice in the Nepal Gazette, shall require the concerned parties to appear at the office of the Local Level or the Ward Committee of the Local Level and have the original deed certified at the top thereof by that office, and while certifying it, the certifying office shall cause the parties to the deed to sign/thumbprint. Provided that if the parties so desire, they may also cause domestic deeds of less than fifty thousand rupees to be certified pursuant to this Section. (3) If a deed is brought for certification pursuant to Sub-section (2), the office of the relevant Local Level or Ward Committee of the Local Level shall also record the names, surnames, addresses of the parties to the deed, the date of the deed and the amount of transaction or the consideration mentioned in the deed, and shall certify such deed on the same day. Added by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2080.(3a) Deeds of transactions that have not been certified by the office of the relevant Local Level or Ward Committee of the Local Level pursuant to

Sub-section (2) at the time of commencement of this Sub-section shall be caused to be certified within six months from the date of commencement of this Sub-section. Added by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2080.(3b) If any party to the transaction pursuant to Sub-section (3a) is unable to appear in person due to illness or physical or mental disability, in the case of such party, his representative or guardian may cause such deed to be certified.

Added by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2080.(3c) Before certifying the deed of transaction pursuant to Sub-sections (3a) and (3b), the office of the relevant Local Level or Ward Committee of the Local Level may conduct necessary inquiry into the truthfulness of the transaction under such deed. Added by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2080.(3d) For the purpose of causing certification pursuant to Sub-section (3a), even if one party to the transaction is not present, the office of the relevant Local Level or Ward Committee of the Local Level shall, upon ascertaining the veracity of such transaction, issue the certification. Added by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2080.(3e) Notwithstanding anything written in Sub-section (3a), if any party to the transaction is outside Nepal, the deed of transaction shall be caused to be certified within six months from the date of his return.

(4) Amended by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2080.While certifying a deed pursuant to Sub-section (3) or (3a), the office of the Local Level or Ward Committee of the Local Level may charge a fee up to a maximum of two hundred rupees.

(5) A deed that does not fulfill the formalities according to this Section shall not be enforceable by a court. Deleted by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2080.?

(6) The office of the relevant Local Level or Ward Committee of the Local Level shall certify and maintain records of deeds pursuant to this Section. 37. Identification Details to be Mentioned in Deed: (1) When preparing deeds referred to in Sub-section (2) of Section 29, the deed shall be prepared in such a way that the clear identification of the main party concerned relating to the deed is disclosed.

(2) While disclosing identification pursuant to Sub-section (1), the three-generation details including father, mother, grandfather, grandmother and oneself, name of husband or wife, citizenship number, age, date and district of issuance of citizenship, permanent residence address and, if residing temporarily, such address as well, and if a foreign citizen, details of his citizenship, passport number, country issuing the passport and date of issuance of passport, his address, email address, phone number shall be mentioned.

(3) When causing a deed to be made by keeping a guardian or curator present pursuant to this Chapter, the name, surname, residence, citizenship number of the guardian or curator, and if a foreign citizen, his passport number, country issuing the passport and date of issuance of passport, email address and telephone number shall be mentioned. 38.

Details of Corporate Body to be Mentioned: (1) When making or causing to make any deed on behalf of a corporate body, details disclosing the clear identification of such body, registration number and place of the registered or principal office shall be mentioned, and a person authorized by the decision of its board of directors shall sign/thumbprint the deed pursuant to this Chapter. (2) When signing/thumbprinting pursuant to Sub-section (1), the person signing/thumbprinting on behalf of such body shall not be required to affix or cause to affix a thumbprint. Provided that after Amended by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2075.signing, the seal of such body shall be affixed. (3) Notwithstanding anything written in Sub-section (2) of Section 37, in a deed where the corporate body is the party concerned, the

three-generation details need not be mentioned. 39. Signature Sufficient: (1) Notwithstanding anything written elsewhere in this Chapter, when a public officer Amended by the Act to Amend Some Nepal Acts Relating to the Muluki Code, 2075, signs any deed in ??, ??????? ?? ??????? ?????? ?????? : Notwithstanding anything contained in Section 52 or 53, if a person is a minor or a person of unsound mind, and there is a guardian or curator of such person according to law, such guardian or curator may file a plaint within the limitation period under this Chapter. ??, ??????? ?????? ?????? : Where there are persons who are required to file a plaint jointly, the limitation period shall not be suspended in respect of any person other than a minor or a person of unsound mind.

Provided that:

(1) If the unexpired limitation period is less than seven days, the limitation period to file a plaint shall be deemed to be saved for seven days.

(2) If the court dismissed the plaint at the time of filing on the ground of lack of jurisdiction, the limitation period to file a plaint under this section shall not be extended solely by reason of the proceedings having been conducted before the court lacking jurisdiction.

(3) After it becomes known that the court where the plaint is registered does not have jurisdiction to proceed with, hear and dispose of it, the concerned person shall not be deemed to be prevented from filing a plaint in the court having jurisdiction within the limitation period under law merely because the plaint was not disposed of by such court.

(4) If a plaint is registered fraudulently by concealing the fact that the limitation period under law has already expired, jurisdiction shall not be deemed to be established solely by reason of the registration of such plaint.

??, ??????? ?????????? : If a person is unable to register a plaint within the limitation period due to any of the following circumstances beyond his control, and the limitation period has expired, and he registers a plaint within the following periods, the court shall, subject to Section 59, register such plaint notwithstanding anything else contained in this Chapter:

(a) If a person who was required to file a plaint has suffered the death of a relative and, according to custom, he himself is required to observe mourning (Kiriya) or mourning equivalent to Kiriya under ?????? ?????? ?????????? ?????? ?????? ?????? ??????? ?????? ??, ?????? ??????? ?????????? ? ? within seven days, excluding the time for travel, from the date on which fifteen days have elapsed from the date of death of such person.

(b) If the person required to file a plaint is a woman who has given childbirth ? within sixty days, excluding the time for travel, from the date of childbirth.

(c) If the road is blocked by a river, landslide or snow, or a curfew is declared, or public transport is not operating for any other reason ? within fifteen days, excluding the time for travel, from the date the road opens or public transport resumes.

(d) If the person required to file a plaint has been kidnapped or taken hostage ? within fifteen days, excluding the time for travel, from the date of release from such kidnapping or hostage.

(e) If a disaster such as an earthquake or volcanic eruption has occurred ? within ten days, excluding the time for travel, from the date of such disaster.

(f) If, due to an accident, the person becomes unconscious or unable to move, or due to a sudden severe illness is unable to move and is admitted to a hospital and remains undergoing treatment ? within fifteen

days, excluding the time for travel, from the date of such admission.

??, ??????? ?????????? ??????? ??????? ??? ???????????? : (1) When filing a plaint due to the circumstances under Section 50 or 58, if a person could not file the plaint within the limitation period, he shall submit a petition to the court along with the evidence necessary to substantiate such fact.

(2) If a person, stating the reason for being unable to submit evidence along with the petition under subsection (1), requests time for the same, the court may grant such time as it deems appropriate, not exceeding fifteen days, to the person wishing to file the plaint for submitting such evidence.

??, ????????? ?????????? ??????? ?????????? ?????????? ????? : If, before filing a plaint against any person, institution or office-bearer, it is necessary to obtain the approval of any person under law, the limitation period for filing a plaint in that regard shall be deemed to commence from the date the concerned person receives the notice of such approval.

??, ?????????? ?????????? ?????????? ?????????? ????? : If, under any law, the authority to designate an officer, court or body to hear a case is vested in the Government of Nepal, any other body or office-bearer, and if such officer, court or body is designated within the limitation period, the limitation period for filing a plaint under the relevant law shall commence accordingly; if not so designated, it shall commence from the date of such designation, and the plaint shall be filed within thirty-five days.

Provided that if a case is filed in the District Court under Section 25, the same procedure shall apply.

??, ?????????? ?????????? ?????????? ????? : (1) If the limitation period is specified in terms of days, it shall be computed as the exact number of days specified.

(2) When computing days under subsection (1), the counting shall begin from the day following the day on which the limitation commences, and the limitation period shall be established accordingly.

(3) If the limitation period is specified in months, it shall be computed on a month-to-month basis according to the calendar month (Sakranti), regardless of the number of days in each month, for the specified number of months.

(4) If the limitation period is specified in years, a period of twelve months shall be considered one year, and it shall be computed for the specified number of years. Chapter-6

Provisions Relating to Court Fee

??, ??????? ??????? ?????????? : (1) Court fee shall be chargeable when filing a plaint or a petition of appeal in court, or when filing a counterclaim in court.

(2) In addition to the matters mentioned in subsection (1), court fee shall be payable if an order is made to review a case or to retry a case upon a petition filed for review or retrial. Explanation: For the purposes of this Chapter, "court fee" means the fee charged when filing a plaint or an appeal, or when filing for review or retrial of a case, and the said term also includes the fee payable by a person filing a counterclaim for such counterclaim.

(3) Notwithstanding anything contained in subsection (1) or (2), no court fee under this Chapter shall be chargeable in a case in which the Government of Nepal, or a Provincial Government, or a Local Level is the plaintiff, or in a case which is to be proceeded with by a body designated by the Government of Nepal by notification in the Nepal Gazette.

??, ?????? ?????? ?????? ?????? ?????????? ?????????? ??? ??????? : ??????? ??????? ?????????? ?????? ?????? ?????? ??????? ??????? ??, ?????? ?????????? ?????????? ? (1) Without depositing the court fee chargeable under this Chapter, no proceeding shall be conducted on a plaint or petition of appeal filed in court, a counterclaim made, or a petition filed for review or retrial of a case.

(2) Except as otherwise provided in this Chapter, a plaint, petition of appeal, or a case filed for review or retrial registered without depositing the court fee shall be dismissed.

??, ?????????? ??????? ?????? ??????????

?????? ??????? : (1) Notwithstanding anything contained in Section 64, in any of the following circumstances, the judge may, by making a note with reasons, order the registration of a plaint, petition of appeal, or counterclaim, or order the hearing of a case on review or retrial, on the condition that the court fee, in whole or in part, shall be paid later:

(a) If, upon inquiry into a petition filed in court by the person liable to pay the court fee stating that his financial condition is extremely weak and he is unable to pay the whole or part of the court fee, there are reasonable grounds to believe it;

(b) If a person liable to pay the court fee has no property other than the property involved in the case and is unable to deposit the court fee, and a recommendation to that effect has been received from the concerned Local Level, or if a petition of the same nature from such person is received in court and upon inquiry there are reasonable grounds to believe it.

(2) If an order is made by the judge under subsection (1) that the court fee shall be paid later in whole or in part, the concerned employee shall clearly record how much court fee has been collected and how much remains to be collected, and keep a record thereof along with the case file.

??, ?????????????? ??????? ?? ?????? ?????????? ??????? : (1) When filing a plaint, the value or amount in dispute of the property claimed or sought to be relinquished shall be clearly stated in cash.

(2) In cases other than those mentioned in subsection (1), if a plaint claims only that a person has not done what he ought to have done, or has done or is about to do what he ought not to have done, such claim shall also be clearly stated in the plaint.

(3) If a plaint is filed with a claim under subsection (2) and it later becomes necessary to make a decision awarding the value or amount in dispute, the court shall, before making such decision, require the person filing the plaint to deposit the court fee according to such value or amount in dispute.

??, ??????? ?? ?????? ?????? ??????? ?????? : For the purpose of depositing court fee, the value or amount in dispute of immovable property under Section 66 shall be determined on the basis of the following order of priority:

(a) The fee determined by the Land Revenue Office for registration purposes;

(b) If any value has been determined under prevailing law for tax purposes, such value;

(c) The prevailing local market price.

??, ?????????? ??????? ??????? ?????? ??????? ??????? ?? ?????? : The court shall levy court fee on the basis of the following values or amounts in dispute:

- (a) In cases where a sum of money is to be adjudged or a claim is to be relinquished, the amount that is to be adjudged or relinquished;
- (b) In cases where gold, silver, gems or jewellery are to be delivered or a claim is to be relinquished, the amount arrived at according to the rate fixed by Nepal Rastra Bank, and if no such rate is fixed, the amount arrived at on the basis of the prevailing market price;
- (c) In cases where movable property other than that mentioned in clause (b) is to be delivered or a claim is to be relinquished, the amount arrived at on the basis of the prevailing market price of such property;
- (d) In cases where securities or debentures are to be delivered or a claim is to be relinquished, the value fixed by the securities market;
- (e) In the case of movable property where the prevailing market price under clause (c) is not ascertainable, the amount of value or amount in dispute fixed by the plaintiff;
- (f) In cases where the income from land is claimed, the amount of income of the previous year in which no disaster occurred;
- (g) In cases where immovable land is claimed as a substantive right or a claim of right is to be relinquished, the amount of value and amount in dispute fixed and brought by the plaintiff under Section 66;
- (h) In cases where it is claimed that the income from land affected by disaster was not remitted, the amount claimed to be remitted;
- (i) In cases where remission other than income from land is claimed, the amount claimed to be remitted;
- (j) In cases where a claim is made regarding Guthi, Mahantai, Pujari, Bhandare, etc., or a claim is to be relinquished, or a claim is made for release from such work, the amount derived from the balance of the Guthi's income receivable for management, and for other claims, the amount of the leased land or the amount in dispute, and if the land is not leased, the amount of one year's net income;
- (k) In cases where a claim is made regarding lease money or a claim is to be relinquished, the amount of lease money for the number of years claimed, and if only loss of income is claimed, the amount of loss of income claimed;
- (l) In the case of immovable property under mortgage, the amount in dispute mentioned in the deed;
- (m) In cases where an account settlement or handover of accounts is required, the amount in dispute shown by the debtor;
- (n) In cases where salary, allowance or installment is claimed, the amount of such claim;
- (o) In cases where wages, labour charges, loss, or damages are claimed, the amount of such claimed value;
- (p) In cases where principal, profit, dividend, bonus, gift, interest, rent of house or shop, or any property is claimed, the amount of such property;
- (q) In cases where any compensation is claimed, the amount so claimed;
- (r) In cases where a claim is made for performance or payment according to a contract, the amount claimed to be performed or paid.

?? . ?????? ?????? ?? : When filing a plaint, court fee shall be charged at the following rates on the amount of value or amount in dispute claimed or sought to be relinquished under Section 68:

- (a) For the first twenty-five thousand rupees: five hundred rupees;
- (b) For amounts up to fifty thousand rupees: at the rate of five percent on the next twenty-five thousand rupees;
- (c) For amounts up to one lakh rupees: at the rate of three point five percent on the next fifty thousand rupees; (d) For amounts up to five lakh rupees: at the rate of two percent on the next four lakh rupees;
- (e) For amounts up to twenty-five lakh rupees: at the rate of one point five percent on the next twenty lakh rupees;
- (f) For amounts exceeding twenty-five lakh rupees, whatever the amount: at the rate of one percent on the excess amount.

?? . ?????? ?????? ?????? : (1) Notwithstanding anything contained in Section 69, a lump sum court fee of five hundred rupees shall be chargeable on the following subjects and cases related thereto:

- (a) Registration of land or name transfer, or cancellation of such registration or name transfer;
- (b) Claim on receipt and voucher;
- (c) Claim for delivery of documents such as deed, account paper, surety bond, undertaking voucher, etc.;
- (d) Claim for eviction of a person occupying a house or land, or that such person should not be evicted;
- (e) Claim regarding construction of a dam, canal or watercourse, or regarding denial of water from them, or taking water by violating the order of turns;
- (f) Claim regarding opening or closing of an exit, window or door, or regarding placing, adding or closing a window, door or balcony;
- (g) Claim for issuance of an injunction or mandatory order to refrain from doing or causing to do any act, or to cause to do any act, or cancellation of such order;
- (h) Determination of full capacity, partial capacity or incapacity of any person;
- (i) Divorce;
- (j) Determination of relationship;
- (k) Claim for a judicial declaration regarding the death of any person, or cancellation or amendment of such judicial declaration;
- (l) Claim for initiating or not initiating account settlement proceedings;
- (m) Appointment or removal of a Guthi operator;
- (n) Appointment or removal of a guardian;
- (o) Appointment or removal of a curator;

(p) Claim for usufruct or its cancellation:

Provided that if a value is mentioned, court fee shall be charged on the basis of such value.

(q) Claim for maintenance or its cancellation.

(2) Notwithstanding anything contained in subsection (1), a lump sum court fee of one thousand rupees shall be chargeable on the following cases:

(a) Claim for ascertaining or awarding the share of property subject to partition;

(b) Cancellation of a deed or document.

(3) In disputes arising from any other contract where the amount in dispute is not disclosed, beyond those mentioned in subsections (1) and (2), a lump sum court fee of two thousand five hundred rupees shall be chargeable.

70. (1) Notwithstanding anything contained in Section 70, court fee shall be chargeable in the following cases as follows:

(a) If, from the plaintiff's or appellant's contention, the right to any property is to be determined, according to Section 68;

(b) In a partition case, if the list of property is not filed with the plaint but is filed with the written statement, or if the amount in dispute is determined according to the list requested by the court, according to such amount in dispute;

(c) If a plaint is filed claiming both principal and interest, on the amount of interest up to the date of filing the plaint;

(d) If a decision is made after judgment awarding interest as well, on the interest arising under law from the date of filing the plaint until the execution of the judgment.

(2) Notwithstanding anything contained in subsection (1), in any case where the value or amount in dispute is disclosed, court fee shall be chargeable on the basis of such value or amount in dispute as mentioned in other sections of this Chapter; and

In any other case where the value or amount in dispute is not disclosed, subject to Section 70, court fee of one thousand rupees shall be chargeable.

71. For the purpose of levying court fee under this Chapter, when determining the value of any property, in the case of immovable property, the value shall be determined according to Section 67; and in the case of other property, the value shall be determined on the basis of the value of the day immediately preceding the day on which the plaint is filed under this Chapter.

72. (1) In a case where the value or amount in dispute is disclosed, when filing an appeal at any level, additional court fee shall be chargeable at the rate of fifteen percent of the court fee chargeable at the time of registration of the plaint for the extent to which the appellant is aggrieved and files the appeal.

(2) In a partition case where the amount in dispute is not disclosed, when filing an appeal at any level, court fee equal to that charged at the time of registration of the plaint shall be chargeable.

(3) If an appeal is filed in the second-level court against the appellate judgment rendered by the court hearing the first-level appeal, court fee shall be chargeable at an additional rate of fifteen percent of the court fee chargeable at the time of registration of the plaint for the extent to which the appellant is aggrieved and files the appeal.

?? ?????????? ?? ?????? ?????????? ?????? ?????? ?????? ?????? : If an order is made for review or retrial upon a petition filed for review or retrial of a case under law, court fee shall be chargeable at an additional rate of ten percent of the court fee chargeable at the time of registration of the plaint for the extent to which the petitioner is aggrieved and has sought review or retrial on that point.

?? ?????? ?????? ?????? ?????? ?????? ? ?????? ?????????? ?????? ?????? ?????? : (1) When a party files an appeal against the judgment of the trial level, or when filing an appeal in the court hearing the second-level appeal against the appellate judgment rendered by the court hearing the first-level appeal, the party shall deposit the court fee adjudged under the judgment to be paid by him to the other party.

(2) When a party files a petition for review or retrial under law, he shall deposit the court fe

If the court fee cannot be so deposited, or if the amount of the bank guarantee cannot be recovered by the court, such case shall be dealt with under Section 64.

(4) If court fee is deposited in court under subsection (1), the concerned employee shall record the receipt in the cash book and prepare three copies of the receipt in due form, deliver one copy to the person depositing the court fee, and place another copy in the relevant case file.

?? ?????? ?????? ?????? ?????? ?????? ?????? : (1) If, at the time of registration of a plaint or petition of appeal, or from the contents of the plaint or petition of appeal, it appears that the court fee deposited is less than the court fee chargeable under this Chapter, the court shall immediately require the concerned person to deposit the deficit court fee.

(2) If a person is unable to deposit the deficit court fee immediately under subsection (1) and requests time, the court shall grant time to the concerned person to deposit the deficit court fee within the remaining period of the final limitation for filing the plaint or petition of appeal, if such remaining period is seven days or more; and if the remaining period is less than seven days, the court shall grant time of seven days.

(3) If, after the registration of the plaint or petition of appeal, it comes to the notice of the court in any manner that court fee has been collected or paid less than the amount chargeable under this Chapter, or if a complaint is received in that regard and upon inquiry the matter appears reasonable, and if the party is present on the date fixed, the court shall fix a date for the party to deposit the deficit court fee within seven days; and if the party is not present on the date fixed, the court shall issue a notice for seven days to deposit the deficit court fee.

(4) If the party does not deposit the court fee within the period granted under subsection (3), such case shall not be proceeded with, heard and disposed of by the court.

?? ??? ?????? ?????? ?????? ?????? ?????? : (1) If it comes to the notice of the court during the course of proceedings, upon a petition of the party or from other information, that excess court fee has been collected from a party, the court shall refund the excess court fee to the concerned party within three months from the date of the petition or the date it came to notice.

(2) If it comes to the notice in any manner after the final judgment of a case that excess court fee has been

deposited, the concerned party may file a petition in the relevant court to obtain a refund of such court fee.

(3) If, upon inquiry into the petition received under subsection (2), the petitioner's claim appears reasonable, the court shall refund such court fee to the petitioner within three months from the date of the petition.

?? ?????? ?????? ?????? ?????? ??? ?????? ??? ?????? : (1) A person aggrieved by the court fee determined by the court under this Chapter may, if the court fee has not been deposited, file a complaint before the same judge of that court within three days; and if the court fee has been deposited, may file a complaint before the final judgment in the case.

(2) If, upon inquiry into the complaint received under subsection (1), it appears that excess court fee has been collected, the concerned judge shall order the refund of the excess court fee and shall order departmental action against the employee who knowingly collected the excess court fee.

Explanation: For the purposes of this subsection, "knowingly" means the act of not collecting court fee under this Chapter on the value or amount in dispute apparent from the contents of the plaint or petition of appeal or from evidence.

(3) If, upon inquiry under subsection (2), the contents of the complaint are found to be false, the complainant shall be fined at the rate of fifteen percent of the amount claimed as excess court fee collected or determined.

?? ??? ?????? ?????? ??? ?? ?????? ?????? ?????? ?????? : (1) If it appears that a person has reduced the value or amount in dispute with the intention of paying less court fee, the interested party may file a complaint in the court where the case is pending.

(2) If, upon inquiry into the complaint received under subsection (1), or upon examination of the case file by the court even without such complaint, it appears that the value or amount in dispute has been reduced with the intention of depositing less court fee, the court shall impose a fine of fifteen percent of the reduced court fee on such party and require him to deposit the deficit court fee.

(3) If, upon inquiry into the complaint filed under subsection (1), the complaint is found to be false, the complainant shall be fined five percent of the amount claimed as deficit court fee.

(4) If it appears from any complaint or in any other manner that a court employee has knowingly collected court fee less than the amount chargeable, departmental action shall be taken against him under law.

(5) If the final judgment in the case in which court fee was collected less under subsection (4) has been rendered, or the time for appeal in such case has expired, and such court fee cannot be recovered from the concerned party, the amount of such court fee shall be recovered from the employee who collected the less amount.

?? ?????? ?????? ??? ?????? : In a case where court fee is chargeable, if the plaintiff or appellant loses the case, or if, upon proceedings on a petition for review or retrial, the previous judgment is upheld, the court fee deposited by him shall be forfeited.

?? ?????? ?????????, ?????? ?? ?????? ?????? ?????? : (1) In a case registered upon full payment of court fee, if a compromise is made, twenty-five percent of the court fee shall be taken if the compromise is made before the commencement of evidence at the trial level, and half of the court fee shall be taken if the compromise is made at any stage or level thereafter, and the remaining court fee shall be refunded to the plaintiff, appellant or concerned party.

(2) In a case registered on the condition that the court fee is to be paid later in whole or in part, when making a compromise, the court shall collect the court fee chargeable under subsection (1) from the plaintiff or appellant and then only allow the compromise.

(3) If a case registered upon full payment of court fee is dismissed or struck off, no penalty shall be imposed on the plaintiff or appellant.

(4) If a case is dismissed or struck off, the court fee paid for such case shall not be refunded.

(5) If a case registered on the condition that the court fee is to be paid later in whole or in part is dismissed or struck off, the balance court fee shall be recovered from the plaintiff or appellant.

Provided that in the case of a case being struck off, if it appears from the contents of the plaint itself that the plaint was registered even though it was not able to be registered, the court fee collected for such case shall be refunded.

(6) If a case that has been compromised, dismissed or struck off in accordance with the procedure of law is revived and proceeded with in any manner upon a complaint of a party, the person upon whose complaint the case is revived shall again deposit in the court where the case is pending the court fee chargeable under this Chapter.

?? . ?????? ?????? : (1) In a case where court fee is chargeable, the winning party may recover the court fee paid by him from the losing party under the judgment.

(2) When recovering court fee under subsection (1), if there is more than one defendant or respondent, the court fee shall be recovered from each such person in proportion to the amount in dispute for which each is adjudged liable to pay; in matters where a right or claim is to be relinquished or surrendered, the court fee shall be recovered from as many persons as are required to relinquish or surrender such right or claim in equal proportion; and in other circumstances, the court fee shall be recovered proportionately from as many defendants or respondents who have lost.

(3) In a case where a plaint is registered without paying the whole or part of the court fee, if the plaintiff or appellant is adjudged to have won, the court fee so adjudged shall be recovered from the other party in the nature of a fine or penalty.

(4) If the plaintiff or appellant has claimed on more than one subject, he shall be entitled to recover the court fee chargeable only for the number of subjects on which the claim is decreed, from the other party.

(5) In a case filed without paying the whole or part of the court fee, if the plaintiff or appellant loses the case, the chargeable court fee shall be recovered from him.

(6) If a judgment is rendered under this section that the plaintiff or appellant is entitled to recover court fee, and the defendant or respondent dies before such recovery, such court fee may be recovered from the person taking the estate of the deceased.

(7) When a case filed for appeal, review or retrial is decided, if the appellant or petitioner wins in part or in full, he shall be entitled to recover the court fee adjudged for the portion won from the respondent.

?? . ?????? : When recovering or collecting the amount in dispute, fine, penalty, court fee and other charges or fees under a judgment, the court shall first recover or collect the court fee.

Chapter-7

Provisions Relating to Complaint and Presentation of Claim

??, ??? ???? : (1) If any person wishes to enforce a claim under law, he shall file such claim in court.

(2) When filing a claim under subsection (1), a complaint shall be submitted to the court in compliance with the procedure and conditions under this Chapter.

??, ?? ??

(12) Notwithstanding anything contained in subsection (11), when serving summons in the name of a government office, constitutional body, or court, such summons shall be served by delivering it to the head of that office, the administrative chief, or any officer responsible for such matters, or the officer acting on their behalf, and if no such officer is available, by stating the same and delivering the summons to that office, body, or court.

(13) When summons must be served in that capacity in the name of any government office, constitutional body, court, any organized institution, or its officers or employees, it shall be served by delivering it to such office, body, court, or institution, or its officers or employees.

(14) If summons cannot be served in accordance with subsections (11), (12), and (13), the process server shall submit a report to the relevant court within three days, stating the reason thereof.

(15) Upon submission of a report pursuant to subsection (14), the court may order that summons be served by post in the name of such office, body, court, or organized institution, or its officers or employees, in that capacity.

(16) If an order has been made pursuant to subsection (15), when sending summons in that capacity to such office, body, court, or organized institution, or its officers or employees, it may be served by sending a registered letter from the relevant court stating the same particulars.

(17) After the return receipt of the summons sent by post pursuant to subsection (16) is filed in the court, such summons shall be deemed to have been duly served, except where it is proved otherwise.

(18) Notwithstanding anything contained elsewhere in this section, if the house number or block number of a person residing within the area of any local level has been recorded and marked sequentially, and if the court has approved that summons may be served by post to that place or for such person's business, occupation, or any matter, the court may serve summons subject to that provision.

(19) If a report is received from the concerned process server that a summons issued in the name of any person who is an officer or employee of any government office, constitutional body, court, or organized institution cannot be served pursuant to subsections (2), (3), (4), and (5), the court may order that summons be served on such person pursuant to subsection (13) or (15).

(20) If an order has been made pursuant to subsection (19), the court shall serve the summons or notice in the name of the concerned person in accordance with such order.

(21) Notwithstanding anything contained elsewhere in this section, if the parties to a case have arranged for an address for exchanging electronic information such as email, fax, etc., for the purpose of giving notice to each other regarding any document, related matter, or transaction, or for sending summons in relation to the

dispute, the court may serve summons through electronic information at such address.

(22) If, after adopting the procedures mentioned in various subsections of this section, a report is received from the process server stating that summons could not be served in the name of the concerned person, and if the contents of the report appear reasonable, the court shall order that summons be served by publishing it in national daily newspapers in the name of such person.

(23) If an order has been made pursuant to subsection (22), summons shall be served in accordance with that order.

(24) The expenses incurred for serving summons by publication in national daily newspapers pursuant to subsection (22) shall be borne by the concerned party.

106. Service of summons in court itself: (1) Notwithstanding anything contained in section 105 or 107, the process server may serve summons issued in the name of the following persons by delivering it to such person in the court itself:-

- (a) if the person is an employee or officer of the relevant court, when he/she is present in the court,
- (b) if the person is a party who is on a date in another case in the relevant court, when such party is present in the court,
- (c) if the person is a representative representing any party in any case pending in the relevant court, when appearing in court in such representation,
- (d) if the person is a legal practitioner appearing in the relevant court in the course of legal practice, when appearing in court in the course of such practice,
- (e) if the person is a person appearing as a witness, when appearing in court in that capacity.

(2) If the process server brings the summons to be served to a person mentioned in subsection (1) at the time when such person is present in the relevant court, that person shall accept it.

(3) If any person states that the summons brought for service pursuant to subsection (2) cannot be accepted, the process server shall immediately submit a report thereof to the court.

(4) If the contents of the report received pursuant to subsection (3) appear reasonable, the court shall, in respect of such person, issue an order prohibiting him/her from representing as a representative, taking dates, practicing law, or giving testimony as a witness in that court until he/she accepts the summons issued from the court. 107. Summons deemed to be served: (1) A summons issued by the court shall be deemed to have been served if it is delivered to the concerned person at any place or at his/her address in accordance with this Chapter, or if the person is informed thereof by any other means by which a record may be made pursuant to this Code as amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075..

(2) Notwithstanding anything contained in subsection (1), if the person receiving the summons appears in court and applies to accept the summons himself/herself, the summons shall be served on him/her in the court itself, and such service shall be deemed to have been duly made. 108.

Assistance to be provided to the process server: (1) When serving summons pursuant to this Chapter, the relevant ward chairperson, member, secretary of the local level, or any government employee, and local persons, shall provide all necessary assistance in searching for, showing, identifying, and making known the house and door of the concerned person, and shall assist the process server in the work of serving such summons by witnessing and signing or affixing a seal during such service. (2) Notwithstanding anything contained in subsection (1), if the relevant ward chairperson, member, secretary of the local level, or any

government employee, and other local persons do not assist or refuse to assist by witnessing during the service of summons, the summons that has been served duly by completing other procedures shall not become invalid solely due to that reason. 109. Punishment for person failing to assist: If a report is received from the process server stating that a person who has a duty to provide assistance under section 108 has not provided any assistance during the service of summons, and if the contents of such report appear reasonable, the relevant court may impose a fine of up to five thousand rupees on the person who has not so assisted. 110. Verification of served summons: As soon as the process server submits a report after serving summons pursuant to this Chapter, the relevant authorized officer of the court shall verify whether such summons has been duly served or not, and if it appears to have been duly served, shall certify the same and place it in the case file. 111. Order for re-service: (1) If, upon verification under section 110, it appears that the summons was not served in compliance with the procedure prescribed by law, or if a complaint is received regarding such service and upon inquiry it appears that the summons was served irregularly or not served at all, the court shall order the concerned process server or another process server to serve it again in accordance with the procedure. (2) If an order has been made pursuant to subsection (1), such process server shall serve the summons again pursuant to this Chapter. 112. Penalty on the serving person: If the process server fails to deliver the third copy of the summons affixed to the house door to the relevant local level when the concerned person is not found, the process server who fails to deliver it shall be liable to a fine of up to one thousand rupees for each occasion, and the relevant court may also order departmental action against such process server. 113.

Service of summons on representative or legal practitioner: (1) Notwithstanding anything contained elsewhere in this Chapter, if a representative or legal practitioner has been appointed by a person according to law to accept summons that need to be served on him/her, such summons may be served on that representative or legal practitioner. (2) When serving summons on a representative or legal practitioner pursuant to clause (c) or (d) of subsection (1) of section 106 and this section, a receipt shall be obtained in the format according to Schedule-8. (3) If summons is delivered or served on the representative or legal practitioner of a party pursuant to subsection (1), or on the authorized representative in a case where an authorized representative has been appointed, it shall be deemed to have been duly delivered or served pursuant to this Chapter. 114. Service of summons in the name of a person whose house address is not found: (1) Notwithstanding anything contained in section 105, when the court must serve summons or notice in the name of a person whose house address is not found, if his/her village, city, and locality are mentioned, the summons may be served at that address; and if the village, city, and locality are also not found, stating the same, the summons may be served by affixing it on the court notice board and publishing a notice in national daily newspapers. (2) If summons is served through newspapers pursuant to subsection (1), it shall be deemed to have been duly served. 115. Service of summons on a person outside the territorial jurisdiction: (1) When summons must be served in the name of a person residing outside the territorial jurisdiction of the court where the case is filed, the necessary copies of the notice along with the summons shall be sent to the court having territorial jurisdiction over the area where such person resides, together with the order of that court, and while sending, electronic means may also be used. (2) If a notice along with summons is received from another court pursuant to subsection (1), that court shall also cause the summons to be served by following the procedure under this Chapter. (3) After the summons is served pursuant to subsection (2), that court shall send such summons to the relevant court. 116.

Penalty for irregularly serving summons, causing service, or obstructing: The court may initiate proceedings on the basis of a report from the concerned process server or a complaint from anyone, and impose a fine of up to ten thousand rupees or imprisonment for up to one month, or both, on a person who commits the

following acts:- (a) failing to cause the service of a summons issued by the court without reasonable cause, (b) serving or causing to serve a summons by writing or causing to write false particulars, (c) obstructing or opposing the service of a summons or notice, (d) tearing or removing a summons that has been affixed. 117. Invalid summons to be void: (1) A party to a case may file an application in the court at any time before the case is decided, regarding the fact that summons was not served after completing the procedure under this Chapter, or that summons was not served at all. (2) If the court determines that the contents of the application filed under subsection (1) are reasonable, it may void the summons that was irregularly served and order re-service of summons or order the concerned party to accept the summons. (3) Notwithstanding anything contained in subsection (1) or (2), if, upon verification by the court, it appears that the summons brought for service under this Chapter was served without following the procedure, such summons shall be voided and it shall be ordered to be served again in accordance with the procedure. 118.

Right to file an appeal in the nature of a written statement: (1) If a defendant, without being able to defend or file a written statement in a case due to irregular service of summons without completing the procedure under this Chapter, and an ex parte decree has been passed by the lower court against him/her, stating such fact, the concerned defendant may file an appeal in the nature of a written statement in the relevant appellate court within thirty-five days from the date of knowledge, but within six months of the date of such decree. (2) If an appeal in the nature of a written statement is received under subsection (1), the appellate court shall, before hearing such appeal, determine whether summons was duly served on the person made a defendant in the plaint or on the person whom the court has made a defendant under section 123. (3) If, upon hearing under subsection (2), the appellate court determines that summons was not duly served on the defendant or on the person whom the court has made a defendant under section 123, the ex parte decree passed by the lower court in such case shall be voided, and the appeal petition shall be treated as a written statement itself, and the lower court shall be ordered to re-initiate proceedings, hear, and decide the case according to law, and the case file shall be sent to that court. (4) If the case file with the order is received from the appellate court under subsection (3), the relevant court shall, within three days of receiving such file, serve summons in the name of the plaintiff with a period of seven days, excluding travel time. (5) If summons is served under subsection (4), if the plaintiff appears within the period, or after the period expires, the case shall be proceeded with, heard, and decided according to law. Chapter-9 Provisions relating to Written Statement and Counterclaim 119. Written statement to be filed: (1) The defendant shall file a written statement in the relevant court within twenty-one days, excluding travel time, from the date of service of summons on the defendant pursuant to Chapter-8 as amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075.. (2) Unless otherwise provided elsewhere in this Code, a written statement brought for filing after the period under subsection (1) shall not be registered, and even if registered, the court shall not accept such written statement. 120. Format of written statement: When submitting a written statement, it shall be prepared in the format according to Schedule-9. 121.

Counterclaim may be filed: (1) When submitting a written statement, if the defendant wishes to make any claim against the plaintiff, he/she may make such claim, and if he/she makes such claim, it shall be deemed to be a counterclaim. (2) The counterclaim under subsection (1) shall be limited to the subject matter of the plaint claim, and such counterclaim must be mentioned in the written statement itself. (3) If a counterclaim is made under subsection (1), copies of the written statement shall be filed at the rate of two copies if there is up to one plaintiff, and one copy for each additional plaintiff thereafter. Provided that if there are any number of plaintiffs from the same household, only one copy of the written statement may be filed for such plaintiffs. (4) Out of the two copies of the written statement received under subsection (3), one copy shall be delivered by the court to the plaintiff or his/her representative who appears on the date fixed by the court immediately

after the filing of the written statement. (5) Within fifteen days of the delivery of the written statement under subsection (4), the plaintiff shall file in court a written reply stating whether he/she accepts or denies the counterclaim. (6) Notwithstanding anything contained elsewhere in this section, if the defendant gives a statement akin to a written reply before the court and he/she has also made a counterclaim, the court shall make available one copy of the record of such statement to the plaintiff as per subsection (4). (7) If the defendant has made a counterclaim under this section, the court shall order the party making the counterclaim to deposit the court fee under Chapter-6 within seven days, and only if the defendant pays the court fee in accordance with such order shall his/her counterclaim be established. 122. Registration of written statement: (1) If the defendant brings a written statement for registration, the court shall check whether such written statement is within the period and whether it is in proper form, and if it appears to be within the period and in proper form, the court shall register such written statement and give a receipt thereof to the concerned party in the format according to Schedule-3. (2) If, upon checking the written statement under subsection (1), it appears that it has been brought after the expiry of the period or is not in proper form, the court shall state the reason therefor in the written statement and endorse it as rejected. 123.

Court may make a person a defendant: (1) Even if a plaint has not been filed against any person in court, if it appears that the right, interest, claim, or concern of any person is likely to be affected while proceeding with, hearing, or deciding a case, or if it appears from the contents of the plaint filed by the plaintiff or the written statement filed by the defendant that another person is also involved in the subject matter of the plaint claim, or if for any other reasonable reason something needs to be inquired from any person, the court may, stating the reason, order such person to be inquired. (2) If any person must be inquired under subsection (1), a period of seven days, excluding travel time, shall be given, and if such person appears in court within the period so given, his/her statement shall be recorded. (3) If the person inquired under subsection (2) wishes to give a statement disclosing evidence, the court shall record his/her statement, and if he/she wishes to submit a written reply, the court shall order him/her to submit a written reply within a reasonable time not exceeding seven days. (4) If, from the statement or written reply under subsection (3), it appears that such person also has a concern or involvement in the subject matter of the plaint claim, or if his/her right, interest, claim, or concern is also likely to be affected when the court passes a decree, the court shall keep him/her on a date like a defendant. (5) If, from the written reply submitted or statement given by any person under subsection (3), such person appears only as a witness, the court shall not keep him/her on a date. 124. Application may be filed to be made a defendant: (1) After a written statement is registered in court and before the decree is passed, if any person other than those made defendants in the plaint wishes, he/she may file an application in court stating the basis and reason that his/her right, interest, claim, or concern is involved in any case pending in the court and that his/her right, interest, claim, or concern is also likely to be affected when such case is decided, and request to be made a defendant in such case. (2) If the contents of the application received under subsection (1) appear reasonable, the court shall make such person also a defendant and give information thereof to the plaintiff and other defendants in that case. Provided that a defendant made so shall not be entitled to make a counterclaim against the plaintiff. 125.

Written statement fee: A fee of two hundred rupees shall be charged for submitting a written statement. Chapter-10 Provisions relating to Rejection (Darpith) 126. Document to be examined: Upon receipt of a plaint, written statement, appeal petition, or a petition filed in the course of case proceedings for registration in the court, the concerned officer shall immediately examine whether such document is in the form prescribed by law or not, whether it is within the limitation period or prescribed period or not, whether it is within the jurisdiction of the court or not, whether the required particulars are stated or not, whether there are errors, incompleteness, or discrepancies in writing, presentation, or mention, or between figures and words,

and whether such document is otherwise irregular or not. 127. Opportunity to correct document not in proper form: (1) If, upon examination under section 126, it appears that such document has defects such as not being in the form prescribed by law, not stating the required particulars, having errors or incompleteness in writing, presentation, or mention, or having discrepancies in figures or letters, and if such defects can be corrected and the document can be registered, the concerned officer shall, stating in the relevant document the particulars that need to be corrected or made in proper form, with the date mentioned, affix the court seal, endorse it as rejected (darpith), obtain a receipt, and return it to the concerned person. (2) If a document is rejected (darpith) under subsection (1), if the remaining limitation period or prescribed period is more than three days, it may be brought for registration after correction or making it in proper form within the remaining limitation period or prescribed period; and if the remaining limitation period or prescribed period is less than three days, if brought for registration within seven days from the date of rejection, after correction or making it in proper form, the concerned officer shall order such document to be registered. (3) If an order has been made under subsection (2), the court shall register such document. As amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075.128.

Document to be rejected (darpith): (1) If, upon examination under section 126, it appears that such document is not within the limitation period or prescribed period, is not within the jurisdiction of the relevant court, is not triable or maintainable by the court, or is contrary to law and therefore cannot be registered, the concerned officer shall reject it (darpith), affix the court seal, obtain a receipt from the concerned person, and return it. (2) If the complaint (ujuri) rejected due to lack of jurisdiction under subsection (1) is such that the final limitation period for filing a case on the matter expires on the day of rejection, then notwithstanding anything contained in the prevailing law, if the person making such complaint brings it for registration within fifteen days, excluding travel time, from that day, the court having jurisdiction shall register it according to law. 129. Retention of record in court: A copy of the document returned under section 127 or rejected (darpith) under section 128 shall be kept as a record in the court. 130. Application may be filed against rejection order: (1) A party not satisfied with the rejection (darpith) by the concerned officer under section 128 may, within seven days from the date of rejection, file an application before the judge of that court, and if the judge himself/herself has made the rejection, before the appellate court, requesting an order to register the document submitted by him/her. (2) Within fifteen days from the date of the application under subsection (1), the judge of the relevant court or the appellate court shall pass an order on whether the rejection was in accordance with law or not. (3) Before passing an order under subsection (2), the appellate court may, with or without calling for a caveat (kaifiyat), hear the matter on whether such rejection was in accordance with law or not, and if it appears not to be in accordance with law, it shall order registration of the document sought to be registered after rejection. (4) If an order has been made under subsection (3), after receiving such order, the officer who made the rejection shall register such document on the same day. (5) If, upon hearing under subsection (3), such rejection appears to be in accordance with law, the appellate court may, stating the reason, order the proceedings on such application to be concluded. Chapter-11 Provisions relating to Preliminary Hearing 131.

Plea of lack of standing, limitation, or jurisdiction may be taken: When submitting a written statement, if the defendant wishes to take a plea on any or all of the following matters, such matter must be mentioned in the written statement:- (a) that the plaintiff does not have the standing (hakdaiya) to file the case, (b) that the plaint was not filed within the limitation period, (c) that the court in which the plaint is registered does not have the jurisdiction to proceed with, hear, and decide the plaint claim. 132. Preliminary hearing to be conducted: (1) If, when submitting the written statement, the defendant has taken a plea on any or all of the matters mentioned in section 131, the court shall conduct a preliminary hearing on such matter before commencing

proceedings for taking evidence, hearing, or deciding that case. (2) When conducting a preliminary hearing under subsection (1), the court shall, on the date following the date on which the dates of the plaintiff and the defendant are coordinated, conduct the preliminary hearing limited to the matter on which the defendant has taken a plea. (3) When conducting a preliminary hearing under subsection (2), the court shall determine and pass an order or decision on whether the plaintiff has standing to register the plaint, whether the plaint was registered within the limitation period, or whether the court has jurisdiction to proceed with, hear, and decide such case. (4) If, during the preliminary hearing under subsection (3), the plea taken by the defendant regarding lack of standing, non-filing of plaint within limitation, or lack of jurisdiction of the court does not appear reasonable, the court shall proceed with, hear, and decide such case according to law. 133. Proceedings conclude if case dismissed: (1) If, during the preliminary hearing under section 132, it appears that the plaintiff does not have standing to register the plaint, that the case was not filed within the limitation period, or that the court in which the plaint is registered does not have jurisdiction to proceed with, hear, and decide such case, the court shall pass a decree dismissing (kharej) such case. (2) If a decree dismissing the case is passed under subsection (1), the proceedings of such case shall conclude. 134.

Plea on determined matter not allowed: (1) If, while passing an order under section 132, the court has ordered that the plaintiff has standing to register the plaint, that the case was filed within the limitation period, or that such court has jurisdiction to proceed with, hear, and decide such case, the defendant shall not be allowed to take a fresh plea on the same matter while appealing or filing an application for retrial or review of the case. (2) Even if anyone takes a plea contrary to subsection (1), no hearing shall be held on it. (3) Notwithstanding anything contained elsewhere in this section, an application may be made or an appeal may be filed against the order made by the court under subsection (3) of section 132 in accordance with section 157, and against the decision in accordance with section 205, to the relevant appellate court. Chapter-12 Provisions relating to Dates (Tarikh) 135. To be kept on a date: (1) Except in circumstances where a party is not required to appear on a date according to law or court order, the court shall keep each party to a case on a date and proceed with, hear, and decide the case. (2) After the court has taken evidence from both the plaintiff and the defendant, any party may, with the permission of the court, refrain from appearing on a date if he/she wishes. 136. Same date to be fixed for both parties: (1) When parties are on a date, the court shall fix the same date for both parties. (2) After the plaint is registered, the court shall estimate the period for filing the written statement and fix a date after deducting the period during which the written statement is to be or may be filed. (3) If the date fixed under subsection (2) does not coincide with the day on which the defendant filed the written statement, the subsequent date shall be fixed as the same day for both the plaintiff and the defendant. 137.

Purpose to be mentioned when fixing date: (1) When fixing a date, the court shall mention in the date slip and date book the reason and purpose for which the date is fixed and what work is to be completed on the date so fixed. (2) On the date fixed under subsection (1), the court shall complete the work fixed for that purpose. (3) Notwithstanding anything contained in subsection (2), if the scheduled work cannot be completed on the fixed date due to a reasonable cause, or if the work cannot be done due to lack of time, the court shall state the reason in the date receipt and fix another date. (4) The date book and date slip shall be kept in the format according to Schedule-10 and Schedule-11 respectively. 138. Dates not to clash: (1) Except in cases where a representative has been given according to law, if a party has a case also in another court located outside fifteen kilometers (approximately four kos) from the court where the case is filed, and if such party has informed the court where the case is filed by submitting an application, then when fixing a date for the party, the court shall take that matter into consideration and fix a date that does not clash with the date of the case in the other court. (2) If any person is on a date in more than one case in the same court as the same plaintiff

or defendant, and if he/she files an application in court to fix the same date for all cases stating such fact, the court shall, as far as possible, fix the same date for all cases. (3) In the situation where a date has been fixed under subsection (2), if a party to a case appears on a date in any one section of the court, he/she shall be deemed to be present also on the date of other cases in the same section. (4) If any party to a case is present in court on the fixed date, the court shall obtain his/her signature or thumbprint on the date receipt according to Schedule-12 and record his/her presence. (5) If any party is not present in court under subsection (4), he/she shall be deemed to have defaulted on the date, and the concerned officer shall certify and record that fact. 139. Next working day deemed as the date: If the court is closed on the date fixed by the court due to a public holiday, the following day after the public holiday ends shall be deemed as the fixed date. 140.

To inform if person required to appear on date is imprisoned: (1) If a person required to appear in court on the fixed date is imprisoned for some reason and cannot appear, such person himself/herself, or a member of his/her immediate family, a legal practitioner, or a representative, shall inform the court in which case he/she is imprisoned. (2) If information is received that a person is imprisoned under subsection (1), the court shall request from the concerned body information as to why such person is imprisoned and for how long he/she must remain in custody. (3) When information is requested under subsection (2), the concerned body shall immediately provide information to the court where the case is filed, stating the reason for imprisonment and the likely days of detention, and if the person cannot be released immediately, that fact. (4) If information is received under subsection (3) that the imprisoned person will be released within one month, and if he/she appears in court on a date within seven days, excluding travel time, from the date of release, that day shall be treated as the day of appearance, and a date shall be fixed according to law and the case shall be proceeded with. (5) If information is received under subsection (3) that the imprisoned person will remain in custody for more than one month, or that the day of release is uncertain, or that he/she cannot be released immediately, the court shall not have to wait for such person to proceed with, hear, and decide the case. (6) If the imprisoned person, during that period, appoints a representative to do the work that he/she has to do, the appointed representative may do such work on his/her behalf. (7) Notwithstanding anything contained in subsection (5), if a case cannot be decided without summoning or hearing any party to the case, the court shall summon and hear him/her according to law and then proceed with, hear, and decide the case. (8) Notwithstanding anything contained elsewhere in this section, if a person who was in custody during the course of proceedings is released and appears in court within seven days, excluding travel time, he/she shall be kept on a date and the case shall be proceeded with, heard, and decided. 141.

Proceedings not to stop even if date defaulted: (1) If any party to a case is absent and defaults on the date fixed by the court, after the expiry of the period for taking back the date under Chapter-21, the following shall apply in the following matters:- (a) if the plaintiff defaults before the written statement is filed, the plaint claim shall be dismissed (dismiss), (b) if the plaintiff defaults after the written statement is filed, if it appears or is determined that the defendant has partially or fully admitted the plaint claim, a decree shall be passed accordingly up to that extent, and the remaining claim shall be dismissed, (c) if the defendant does not file a written statement, or after filing (2) Notwithstanding anything contained in Sub-section (1), any party to the case may file a petition in the court hearing appeals against such court to have such proceedings annulled as well, on the ground that the time limit has been exceeded in the proceedings conducted in any court, or that the proceedings required to be conducted according to law in the case have not been conducted within the prescribed period, resulting in irregularity. (3) If any petition is filed pursuant to Sub-section (1) or (2), the appellate court shall, after obtaining a report from the concerned court as necessary or by summoning the case record, conduct a hearing on such petition. (4) Upon conducting a hearing pursuant to Sub-section (3), if

the order or proceedings of the lower court appear to be irregular or time-barred, the appellate court may, stating the reason therefor, issue an order in the name of the lower court to annul or revoke such order, or to carry out any other act deemed appropriate by law. 158.

Provisions relating to issuing interim orders: (1) Until the final disposal of any petition, if it appears that the subject matter of a claim would become futile unless it is kept in status quo, the concerned petitioner may, stating such reason, request the issuance of an interim order. (2) If an interim order is requested pursuant to Sub-section (1), the court may, if it deems just and necessary, issue any of the following orders for the period until the disposal of the petition:- (a) to issue an interim order specifying a specific period, (b) to issue an order to summon the other party for discussion as to whether the interim order issued pursuant to clause (a) should be continued or not, (c) to issue an interim order with a condition upon expressing a written undertaking to bear compensation according to the prevailing law if, during the discussion regarding the interim order, it appears that the other party would suffer damage after the final decision of the petition due to the interim order having been issued in favor of one party, (d) if it appears that the claim of the petition would become futile if the subject matter of the claim is not kept in status quo, to keep such subject matter in status quo. (3) Notwithstanding anything contained in Sub-section (2), if it appears appropriate to make a final decision on the subject of the petition submitted for an interim order, the court shall not be barred from making a final decision on such subject. (4) An interim order issued pursuant to Sub-section (2) shall be deemed automatically revoked after the final disposal of the petition. (5) Notwithstanding anything contained elsewhere in this Section, after the court has once refused to issue an interim order, the concerned party may submit another petition for such order on the same subject by stating the grounds and reasons showing a fundamental change in circumstances. (6) If a petition pursuant to Sub-section (5) is submitted, the court may, after hearing both parties, issue an interim order or other appropriate order regarding the interim order. (7) In case an order has been made to summon the other party for discussion as to whether to continue or not continue the interim order issued pursuant to Sub-section (2), if the discussion cannot be held on the same day due to reasons attributable to the petitioner, such interim order shall become ineffective thereafter. (8) While issuing an interim order or refusing to issue an interim order pursuant to this Section, the court must state the reason therefor. (9) Nothing contained in this Section shall impede the continuation of proceedings on the subject matter of the case in a manner that does not affect the order issued pursuant to Sub-section (2) or (6).

159. Abatement of interim order: (1) Any party may submit a petition to the same court requesting the revocation of an interim order issued by the court, stating that the interim order was issued ex parte or that the party did not have an opportunity to present their case.

(2) If a petition is submitted pursuant to Sub-section (1), the court may summon the other party and conduct a hearing on the matter.

(3) Upon conducting a hearing pursuant to Sub-section (2), if it appears appropriate to revoke the previously issued interim order on that matter, the court shall revoke such order stating the reason therefor.

(4) Notwithstanding anything contained in Sub-section (3), if the court deems it appropriate to modify or alter the conditions of the interim order instead of revoking it, the court may, stating the reason therefor, modify or alter such conditions of the interim order. 160. Compensation to be paid: (1) If an interim order issued pursuant to this Chapter is revoked, or its conditions are modified or altered, and any party has suffered loss or damage due to being unable to carry out any proceedings because of the interim order before such revocation, modification, or alteration, such party may submit a petition to the concerned court requesting

compensation, specifying the amount of loss or damage suffered by them, against the party who sought the interim order.

(2) If a petition is submitted pursuant to Sub-section (1), the court may summon the concerned parties and conduct a hearing on such matter.

(3) Upon conducting a hearing pursuant to Sub-section (2), if it appears that the petitioner has actually suffered loss or damage due to the issuance of the interim order, the court may order compensation to be paid for such loss or damage. Provided that,

No order shall be made for compensation for imaginary or indirect loss or damage.

(4) In case an order is made pursuant to Sub-section (3), the party seeking the interim order shall pay the compensation as per such order to the petitioner. Chapter-15

Provisions Relating to Examination of Documentary Evidence

161.

Documentary evidence to be submitted: (1) The plaintiff must submit, along with the plaint, and the defendant must submit, along with the written statement, the original and a copy of the documentary evidence related to the claims mentioned in the plaint and the contentions mentioned in the written statement. (2) Notwithstanding anything contained in Sub-section (1), in a case where the Government of Nepal is the plaintiff or defendant, if the documentary evidence cannot be submitted immediately along with the plaint or written statement, the reason therefor may be stated and the details of which office possesses or is likely to possess such evidence may be mentioned in the plaint or written statement. (3) In case details of the evidence are mentioned in the plaint or written statement pursuant to Sub-section (2), the court may, as necessary, itself summon and examine such evidence from the concerned office. (4) Notwithstanding anything contained elsewhere in this Section, if the original copy of any documentary evidence cannot be submitted immediately to the court, a certified copy duly prepared stating the reason therefor may be submitted. 162. Evidence to be mentioned: (1) Notwithstanding anything contained in Section 161, if the original copy of any documentary evidence is in the custody of any person or entity and the original or copy thereof cannot be made available immediately, the plaintiff or defendant must mention the same in the plaint or written statement. (2) If it appears necessary to examine the evidence mentioned pursuant to Sub-section (1), the court may order such person or entity to submit the original copy or copy of such evidence within the period specified by the court. (3) In case an order is made pursuant to Sub-section (2), such person or entity must submit such evidence to the court within the period specified by the court. (4) If any person or entity fails to submit such evidence within the period stipulated in Sub-section (3), the court may impose a fine of up to one thousand rupees on the chief officer of such person or entity. 163. To be able to request time: (1) If the plaintiff or defendant requests time stating the reason that it was not possible to submit documentary evidence at the time of filing the plaint or written statement, the court may, if the reason appears reasonable, grant time up to fifteen days. (2) The plaintiff or defendant must submit such evidence to the court within the time granted pursuant to Sub-section (1). (3) Evidence not submitted within the time limit specified in Sub-section (2) shall not be considered as evidence in such case. 164.

To be able to permit submission of evidence: (1) If any new and important documentary evidence, which was not within the knowledge of the plaintiff or defendant at the time of filing the plaint or written statement, comes to their knowledge or is discovered later, the plaintiff or defendant may request permission to submit such evidence, and if such reason appears reasonable, the court may permit the plaintiff or defendant to submit

such evidence. (2) If, because the evidence pursuant to Sub-section (1) is under the control of another person, entity, or body and cannot be submitted by the plaintiff or defendant themselves, and a petition is filed in court stating the reason, the court may order to summon such evidence pursuant to Sub-section (2) of Section 162. 165. Original documents to be returned: (1) After the original copy of an evidentiary document and a copy thereof are received pursuant to this Chapter, the concerned officer shall compare the copy of such evidentiary document with the original document, certify the copy, have the person submitting it affix their signature on such copy, and attach it to the case file. (2) After attaching the certified copy to the case file pursuant to Sub-section (1), the court shall return the original copy of such evidence to the concerned person. (3) If the original copy returned pursuant to Sub-section (2) is needed, the court may demand it from the concerned person at any time. If that person fails to submit the original documentary evidence so demanded, such evidence shall not be admissible as evidence in that case. 166. Evidence cannot be examined without submission of written statement: Except where otherwise provided by law, generally, proceedings for examination of evidence shall not be conducted until a written statement has been submitted or the period for submitting a written statement has elapsed. 167. Evidence to be examined: If it appears necessary to examine as evidence any document located in a government office mentioned in the plaint or written statement, an order to examine such evidence shall generally be given within seven days from the date of submission of the written statement, and if no written statement is submitted, from the date on which the period for submitting the written statement has elapsed. 168.

Taking evidence on matters to be adjudicated: (1) On the date fixed for the appearance of the parties to the case, the court shall, in the presence of the plaintiff and the defendant, examine the plaint, written statement, and all documentary evidence submitted, and also make necessary inquiries with them on that matter, and ascertain the points on which the parties agree or disagree. (2) Upon ascertainment pursuant to Sub-section (1), if it appears that the parties agree on the claims, the court shall make a decision on the same day. (3) Upon ascertainment pursuant to Sub-section (1), if it appears that the parties partially or fully disagree, the court shall clearly specify the points of disagreement that require adjudication and the additional evidence required to be examined in relation thereto, and shall order the summoning of evidence and fix a date for examining the evidence. (4) Notwithstanding anything contained elsewhere in this Section, evidence shall not be taken on matters other than those relevant to the issues to be adjudicated in the case. 169. Court may order submission of documents: (1) If it appears to the court that any evidence which is necessary for adjudication of the case, but which a party has not been able to or cannot produce, is in the possession or custody of any person, the court may, at any time during the course of proceedings, by specifying a time limit, order such person to submit the evidence. (2) In case an order is made to submit evidence pursuant to Sub-section (1), the concerned person must, within the period specified in the order, appear before the court themselves or submit such document through another person. (3) A person who fails to submit a document pursuant to Sub-section (2), or fails to state a reasonable cause for being unable to submit the document, may be fined up to ten thousand rupees by the court. 170. Order of taking evidence: (1) Unless the court otherwise orders, when taking evidence on the date fixed for that purpose, generally, the evidence presented by the plaintiff shall be taken first, followed by the evidence presented by the defendant. (2) When taking evidence pursuant to Sub-section (1), if any party to the case immediately objects that any document should not be admitted as evidence or is irrelevant, the court shall examine such matter and immediately pass an order on whether such objection is reasonable or not. (3) While passing an order pursuant to Sub-section (2), if the court determines that a document presented by a party should not be admitted as evidence or is irrelevant, such fact shall be recorded and attached to the case file. 171.

If the party, upon seeing or hearing, characterizes such document as genuine, forged, or fabricated, the court

shall record a statement to that effect and file it.

(2) If, when showing or reading aloud pursuant to Sub-section (1), a party cannot immediately determine whether it is genuine, forged, or fabricated and requests time, the court shall grant a period of up to three days.

(3) If a document bearing the signature of a person other than a party to the case is submitted, and a party to the case cannot immediately determine and characterize it as genuine, forged, or fabricated, and requests time, a period of up to fifteen days may be granted to submit a statement regarding its genuineness, forgery, or fabrication along with evidence.

(4) Whatever characterization (genuine, forged, or fabricated) the party makes in their statement within the time granted pursuant to Sub-section (3), the court shall record such statement and file it accordingly.

(5) When recording a statement pursuant to Sub-section (4), if any party states that such document is forged or fabricated, if all parties to the case are present on that day, their statements shall be recorded on the same day; if any party is not present, the statement of such party shall be recorded on the day they subsequently appear.

(6) In a case where a representative or legal practitioner is present on the date fixed, if it appears necessary to summon the concerned party themselves, the court shall summon such party and record their statement.

(7) If, when showing or reading aloud a document of evidence pursuant to this Section, the concerned party cannot determine its genuineness, forgery, or fabrication, the court may send such evidentiary document for examination to a relevant expert. 173. No need to read out for determination of genuineness, forgery, or fabrication: (1) A document which cannot be admitted as evidence by law need not be read out or shown for the purpose of determining its genuineness, forgery, or fabrication.

(2) If a document submitted as evidence by one defendant affects another defendant, the court shall, following the procedure under Section 172, show and read such evidence to the affected defendant and record their statement. 174. Taking evidence by appellate court: In a case received by a court upon appeal or for review of a decision on any grounds, if it appears necessary to determine the genuineness, forgery, or fabrication of a documentary evidence submitted as evidence in order to render justice, and if the lower court has already decided the case without completing such procedure, the appellate court shall summon the original of such document and record the statement of the parties. 175.

Proceedings, hearing and disposal to be conducted after taking statement: In any civil case, if a criminal matter cognizable by law arises from the written statement or statement of the defendant, proceedings, hearing, and disposal of the case shall be conducted upon recording the statement of the party from within the same case file. Provided that, a court which has jurisdiction to hear only specific types of cases as per law shall conduct proceedings, hearing, and disposal of only those cases as per the same law. 176. Affected party to be heard: If, upon study of the documents attached to the case file, it appears that the rights of a third party, other than the parties to the case, would also be affected while adjudicating any matter, or such person appears to be concerned in the case, the court shall also hear such person, give them a reasonable time and opportunity to present their case, and, based on the evidence submitted by them, place them on record similar to a party and conduct proceedings, hearing, and disposal of the case. 177. To be able to conduct measurement, inspection or survey: (1) If it appears that a case cannot be disposed of without measurement, survey, or inspection of the immovable property in dispute, the court shall order the measurement, inspection, or survey of such property. (2) If an order is made pursuant to Sub-section (1) and the measurement,

inspection, or survey of such property is to be carried out, the court shall specify the place where such measurement, survey, or inspection is to be conducted, fix a date for the parties to appear at such place, or issue a notice of the date. (3) On the date fixed pursuant to Sub-section (2), at least one employee of the court of a minimum rank of non-gazetted second class and an amin shall go to the place where the immovable property is to be measured, inspected, or surveyed, and shall prepare a measurement, inspection, or survey map and minutes in the presence of both parties to the case, at least one representative of the local level (if available), and at least two local individuals. (4) After measurement, inspection, or survey is completed pursuant to Sub-section (3), the employees deputed by the court shall have the signatures of the concerned parties, local individuals, and the representative of the local level affixed on such map and minutes.

They shall write their own names and affix their signatures on such minutes, prepare three copies of the measurement/survey map, write their name, surname, and designation on such maps as well, affix their signatures, provide one copy each to the parties to the case obtaining a receipt, and submit the remaining one copy of the map, receipt, and minutes to the court to be included in the relevant case file.

(5) If, during measurement, inspection, or survey pursuant to Sub-section (3), the parties are not present, or being present do not agree to sign the map and minutes, or in a case where the parties were not present on the specified date, the measurement, survey, or inspection shall be carried out in the presence of the other persons mentioned in Sub-section (4), and the deputed employee shall prepare a note stating that the party was not present or, being present, did not sign. The employee shall have their own signature and the signature of at least one representative of the local level affixed, and submit such map and minutes to the court to be included in the case file.

(6) If, in cases where a representative of the local level is required to be present pursuant to this Section, the representative does not appear despite being notified, the measurement, inspection, or survey conducted after completing other procedures shall not be deemed invalid solely due to their absence.

(7) Measurement, inspection, or survey not conducted in the manner prescribed by this Section shall not be admissible as evidence.

(8) If, while conducting measurement, survey, or inspection of any immovable property pursuant to this Section, an employee deputed by the court is found to have conducted the measurement, survey, or inspection maliciously, resulting in a deviation from the actual or true state of such immovable property, such employee shall be liable to a fine of up to ten thousand rupees and shall also be subject to departmental action. 178.

To be able to conduct spot inspection: (1) If the subject matter of the case is complex and it appears impossible to present such subject matter physically before the court, or if direct observation or inspection of the object submitted as evidence, the subject of the dispute, or the place where the immovable property is situated appears necessary, the court shall pass an order stating the reason therefor. (2) If an order for observation or inspection is made pursuant to Sub-section (1), for that purpose, the judge themselves, or a technical or other employee specified by the court's order, shall conduct the observation or inspection of such object, subject, or place, fixing a date for going in advance. (3) If a technical or other employee has conducted the observation or inspection of such object, subject, or place pursuant to Sub-section (2), such employee shall prepare a report on matters relevant to the subject matter of the case and submit it to the court. Chapter-16 Provisions Relating to Examination of Witnesses 179. Party to produce witnesses: (1) The party to the case must themselves produce the witnesses mentioned as evidence on the date fixed by the

court for their examination. (2) Witnesses not present on the date fixed pursuant to Sub-section (1) cannot be examined. (3) Notwithstanding anything contained in Sub-section (1) or (2), if on the date fixed for producing witnesses, a witness cannot be produced in court due to circumstances mentioned in Section 225, clause (c) or (e), and a petition is submitted within seven days, excluding travel time, from the date the route became clear, attaching a recommendation from the concerned local level or any government body regarding the occurrence of such circumstance, requesting another date to be fixed, the court shall, within seven days of receiving such petition, fix another date for the examination of the witness. 180. Witness may be summoned and examined by the court: (1) Notwithstanding anything contained in Section 179, in a case involving the Government of Nepal or public rights, interests, or concerns, the court shall, by order, issue a summons for a witness whose examination is indispensable to appear in court within fifteen days. (2) If a summons is issued pursuant to Sub-section (1), such witness must appear in court within the period specified by the court. (3) When issuing a summons in the name of a witness pursuant to this Chapter, it shall be issued in the format according to Schedule-14. 181.

Employee may be deputed to examine witness: (1) If a witness is unable to appear in court due to physical illness, and any party to the case files a petition in court to go to the witness's place of residence to examine them, and if such reason appears reasonable, the court shall pass an order to examine the witness as requested in the petition. (2) In case an order is made pursuant to Sub-section (1), the court shall either have the judge go to the place where the witness resides or depute an employee to examine or cause the examination of the witness. (3) The expenses incurred for the judge or court employee going to examine the witness pursuant to Sub-section (2) shall be borne by the person filing the petition. 182. To be able to examine witness through audio-visual communication (video conference): (1) Notwithstanding anything contained elsewhere in this Chapter, if any party to the case files a petition in court stating that a witness is unable to appear in court due to extreme old age, physical disability, illness, or residing outside Nepal, and requests the examination of such witness through audio-visual communication, and if the court finds such reason reasonable, it may order the examination of such witness through audio-visual communication. (2) In case an order is made pursuant to Sub-section (1), the concerned party must produce such witness at the date and place specified by the court for the examination through audio-visual communication. (3) The court shall consider a witness appearing through audio-visual communication as equivalent to a witness present in court and shall examine or cause the examination of the witness accordingly. (4) When causing the examination of a witness pursuant to Sub-section (3), the court shall record in writing the deposition of the witness given through audio-visual communication and the details of the audio-visual communication, and file it. (5) The minutes of the record of the examination of a witness through audio-visual communication shall be prepared by the court according to Schedule-15. (6) The expenses incurred for examining or causing the examination of a witness pursuant to this Section shall be borne by the party filing the petition for examination through audio-visual communication. 183. To fix the day for examination of witnesses on the date fixed for the parties: (1) Except in the situations under Section 181 or 182, when examining witnesses, the court shall fix the day for examination of witnesses on the same day that is fixed for the parties to appear. (2) When examining a witness, a deposition of the statements made by the witness shall be prepared, their signature affixed, and it shall be filed. 184.

Oath to be taken: When appearing in court to give testimony, a witness shall take an oath before the judge in the format of Schedule-16, proclaiming to state the truth. 185. Examination of witness to be conducted by the judge: (1) The examination of a witness shall be conducted by the judge in whose bench the case is presented. (2) When conducting examination pursuant to Sub-section (1), the judge may take the assistance of employees necessary for recording the deposition and examining the witness. 186. Examination of witness

to be completed on the fixed date: (1) Except in the situations under Section 181 or 182, the court must complete the examination of all witnesses present in court on the date fixed for the examination of witnesses. (2) If it is not possible due to lack of time to complete the examination of all witnesses on the same day pursuant to Sub-section (1), the court shall, stating the reason therefor, fix a date for the witnesses and parties for the examination of witnesses on the following day. Explanation: For the purposes of this Section, "the following day" shall mean the first day the court opens immediately after the day the examination of witnesses was conducted. 187. Deposition to be certified: (1) When examining a witness in court, the judge shall ask questions on the matters the witness is required to clarify in the case, and shall record in the deposition the details of such questions, the answers given by the witness, and any cross-examination conducted according to law. (2) After the details pursuant to Sub-section (1) are recorded, the witness shall be asked whether they have anything left to state on any matter; if there is, they shall be allowed to state such matter as well, and such matter shall be recorded in the deposition. The judge shall certify the deposition document by mentioning that the examination of the witness was conducted in the presence of the witness and the parties or their representatives present, and having all such persons affix their signatures. (3) If any or all of the witness, parties, or representatives fail or refuse to sign the deposition document prepared pursuant to Sub-section (2), the judge conducting the examination shall note the same, certify such fact, and place it in the case file of the concerned case. (4) The deposition of a witness shall be taken in the format according to Schedule-17. 188.

To certify stating reasons: If, during examination, the concerned witness does not answer a question asked by the judge, refuses to answer, or gives an answer on an unrelated subject instead of answering the question asked, the judge shall state the reason for this and certify it pursuant to Section 187. 189. To be able to conduct commission for examination of witness: (1) Notwithstanding anything contained elsewhere in this Chapter, if a witness to be examined resides in another district and due to their physical condition cannot be produced before the court where the case is pending to give testimony, and the concerned party files a petition before the court requesting examination through a commission, and if such reason appears reasonable, the court may order the examination of the witness through a commission. (2) If a witness is to be examined through a commission pursuant to Sub-section (1), the questions to be asked to such witness shall be prepared in the format of Schedule-18, certified by the judge, and sent to the District Court of the district where the witness resides, and such questions may also be sent through electronic means. (3) If an order to conduct a commission is made by the court pursuant to Sub-section (1), a date shall be fixed for the parties to the case to appear before the court conducting the commission accordingly, and information thereof shall be given to that court. (4) Upon receiving the commission pursuant to Sub-section (2), that court shall, following the procedures under this Chapter as if the case were filed in its own court, conduct the examination of the witness produced by the concerned party under Sub-section (1) of Section 179. It shall prepare a deposition of the answers to each question of the commission, complete the procedure under Section 187 or 188 on the deposition document, have the person affix their signature, and send it to the concerned district court within three days. (5) If the person who is to be examined through commission pursuant to Sub-section (4) does not appear, that court shall state the same and send it back to the court that sent the commission. (6) When sending a commission to the concerned court pursuant to Sub-section (4), the parties or their representatives in such case shall be informed thereof, a date shall be fixed for them to appear before the court where the case is pending, and they shall be sent accordingly. Chapter-17 Provisions Relating to Hearing and Judgment of Cases 190.

To be able to pass judgment on agreed matters: (1) After the written statement is filed, on the date fixed for the appearance of the plaintiff and the defendant, the court shall study the plaint, written statement, and all

documents filed in the presence of both parties. If any matter is unclear, necessary inquiries shall be made with the plaintiff and defendant regarding such unclear matter. (2) Upon studying or making inquiries pursuant to Sub-section (1), the court shall ascertain the points on which the parties agree or disagree. (3) Upon ascertainment pursuant to Sub-section (2), if it appears that the defendant has admitted the plaintiff's claim, the court may pass judgment on such case immediately. 191. To be able to conduct pre-hearing conference of plaintiff and defendant: (1) If the court deems it reasonable to hold a pre-hearing conference of the plaintiff and the defendant to ascertain the issues to be adjudicated in a case, it may, stating the reason, order such conference to be held. (2) In case an order is made pursuant to Sub-section (1), the court shall fix a date for the parties for that purpose and conduct such conference. (3) The plaintiff, defendant, and their legal practitioners may be present in the conference pursuant to Sub-section (2). (4) In the conference pursuant to Sub-section (2), the plaintiff and defendant may submit evidence supporting or rebutting their claim or defense, and may present their claim or contention to ascertain the issues to be adjudicated by the court. (5) After the issues to be adjudicated are ascertained from the conference pursuant to Sub-section (2), if it appears necessary to take additional evidence on such matters beyond the evidence already taken under Chapter-15, the court shall order such evidence to be taken. (6) In case a conference of the plaintiff or defendant is held pursuant to this Section, the court shall prepare a record thereof and attach it to the case file. (7) Omitted by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075 (2018) 192.

Hearing to be conducted after completion of evidence taking: (1) After the process of taking evidence is completed, the court shall, generally within one month, hear the case and make a decision.

(2) When conducting a hearing pursuant to Sub-section (1), the parties to the case may argue in support of their claim or defense, either themselves or through a legal practitioner or representative appointed by them.

(3) When conducting a hearing pursuant to Sub-section (1), if the court orders the submission of written notes of argument to clarify additional points in the case, the party to the case themselves, or their appointed legal practitioner or representative, must submit the written notes of argument within the time specified by the court. 193. Opportunity for compromise to be given: (1) If the parties wish to compromise a case pending in court at any stage, they may submit a joint petition in court stating the same.

(2) If a petition for compromise is submitted pursuant to Sub-section (1), the court must explain the contents, meaning, and consequences of such petition to the concerned parties.

(3) If, even after the explanation pursuant to Sub-section (2), the parties to the case agree to compromise, the court shall have three copies of a draft compromise prepared.

(4) If, upon hearing the contents of the compromise prepared pursuant to Sub-section (3), the parties agree to the compromise, the signatures of both parties shall be affixed on the compromise document, the judge shall certify that the compromise was made in their presence, one copy shall be placed in the relevant case file, and one copy each shall be given to the plaintiff and the defendant.

(5) Where a compromise is made pursuant to Sub-section (4), no complaint shall lie on the ground of dissatisfaction with the compromise, except regarding matters concerning non-compliance with the terms of the compromise.

(6) Where a compromise is made pursuant to Sub-section (4), if as a consequence thereof, deposit cancellation, name transfer, registration, or subdivision of immovable property is required to be done according to the compromise, the court which facilitated the compromise shall, within three days of the compromise, send a letter to the concerned office to carry out the work as per the compromise.

(7) Upon receiving a letter pursuant to Sub-section (6), the concerned office must implement it within three days. 194.

To be able to settle dispute through mediation: (1) If the parties so wish, they may jointly file a petition in the court where the case is pending at any stage to settle the dispute through mediation. (2) Upon the filing of a petition pursuant to Sub-section (1), if the dispute appears amenable to resolution through mediation, the judge hearing the case shall order that the case be settled through mediation. (3) Notwithstanding anything contained in Sub-section (1) or (2), if it appears to the court that a case pending before it is suitable for resolution through mediation, and the parties agree to enter the mediation process, the court may order the resolution of such case through mediation. (4) In case an order is made pursuant to Sub-section (2) or (3), the process of settling the case through mediation according to law shall be initiated. (5) When following the procedure pursuant to Sub-section (4), if the case is resolved, the parties shall submit a petition to the court stating the same. (6) Upon receipt of a petition pursuant to Sub-section (5), the court shall have the parties enter into a compromise. (7) The provisions of Sub-sections (3), (4), (5), and (6) of Section 193 relating to compromise shall apply, with necessary modifications, to the case resolved through mediation pursuant to this Section. (8) Where an order is given to settle the case through mediation pursuant to this Section, but the case cannot be resolved through that means, the court shall fix a date for the parties and proceed with the proceedings, hearing, and disposal of such case according to law. 195. Compromise or mediation not possible: Notwithstanding anything contained in Section 193 or 194, a case filed by the Government of Nepal as plaintiff, pertaining to Omitted by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075 (2018). and a case concerning public, government, or community property shall not be compromised or resolved through mediation between the parties. Provided that, there shall be no bar to making a compromise in a manner that secures the public, government, or community property. 196. To be able to withdraw claim: (1) In any case other than a case where the Government of (4) When the court adjourns a case, it must cancel the dates of the parties who were present on that date. (5) When the court recalls an adjourned case, it must summon the parties who were on dates at the time of the adjournment by giving them a period of seven days and proceed with the case. 203.

Power to transfer cases: (1) The Supreme Court may, in the circumstances mentioned in sub-article (1) of Article 134 of the Constitution of Nepal, call for a case pending in any High Court to the Supreme Court and conduct, hear, and decide it. (2) The Supreme Court may, in the circumstances mentioned in sub-article (2) of Article 134 of the Constitution of Nepal, order the transfer of a case pending in one High Court to another High Court for the conduct, hearing, and decision of such case. (3) A High Court may, in the circumstances mentioned in sub-section (2) of Article 145 of the Constitution of Nepal, order the transfer of a case pending in one District Court under its jurisdiction to another District Court under its jurisdiction for hearing. (4) The decision on whether the circumstances for transferring a case under sub-section (2) or (3) exist or not shall be made based on a petition from the concerned party to the case or information received through any other means. Added by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.(4A) If there is any reason why a judge of a court cannot hear a case filed in that court according to this Code, the concerned court shall submit a report stating that reason to the appellate court; and upon receiving such a report, the appellate court may, considering the convenience of the parties as well, order the transfer of such a case to another court of an equivalent level within its territorial jurisdiction. Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.(5) When an order is made under sub-sections (2), (3), and (4A), such court shall conduct, hear, or decide such case in accordance with the order of the Supreme Court or the High Court. Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.(6) Even if the case is decided by another court under sub-sections (2), (3), and (4A), an appeal against the judgment

rendered by such court shall lie to the appellate court of the court where the plaint was originally filed. 204.

Supreme Court may hear and decide cases: (1) Notwithstanding anything written elsewhere in this Code, if it appears from a petition of any party to the case or from a report of the concerned court that any case pending in any subordinate court involves a complex question relating to the interpretation of the Constitution or any other law, or involves a question of public importance or concern, and that the hearing and decision of such case would be appropriate only after the resolution of such question, the Supreme Court shall, stating the reason thereof, order to call for and hear and decide such case by itself. (2) If an order is made by the Supreme Court under sub-section (1), the concerned court shall send the record of such case to the Supreme Court, inform the parties to the case thereof, fix a date, and send them to the Supreme Court. (3) If an order is made under sub-section (1), the Supreme Court may hear and decide such case, or resolve the complex constitutional or public importance question involved therein and send the record back to the concerned court for decision on the remaining matters. (4) When sending the record to the concerned court for proceedings on the remaining matters under sub-section (3), the Supreme Court must inform the parties thereof, fix a date, and send them to such court. Chapter-19 Provisions Relating to Appeal 205. Appeal may be filed within the prescribed period: (1) Except where otherwise provided in this Code, a party dissatisfied with a judgment rendered by a trial court may appeal to the relevant appellate court within thirty days from the date of knowledge of the judgment. (2) In cases where an appeal lies, if a party to the case or their heir appears before the court and hears the judgment, the appeal period shall commence from the date of signing the document acknowledging the hearing; and if a party is not present when the judgment is rendered and a notice is issued, the appeal period shall commence from the date of service of such notice, within thirty days. (3) For the purpose of sub-section (1), if the party to the case or their heir was present on the date fixed for hearing, and the judgment of the case was rendered on that same fixed date, the party to the case shall be deemed to have knowledge of the judgment.

Explanation: For the purpose of this section, when calculating the day of knowledge, it shall be counted from the day the judge certifies the judgment under section 198.

(4) Notwithstanding anything written in sub-section (2), if the document acknowledging the hearing of the judgment has not been signed or the notice of the judgment has not been served, the party to the case may appeal within thirty days from the date of obtaining a copy of the judgment, up to six months from the date of the judgment. 206. Circumstances where appeal is not permissible: Notwithstanding anything written in section 205, an appeal shall not be filed in the following circumstances:

- (a) If, after receiving or being served with a notice within the period prescribed by law, the party has let the period expire without filing a written statement or making a defense,
- (b) If the case has been Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.settled through mediation or compromise,
- (c) If the claim has been withdrawn,
- (d) If the plaint has been dismissed,

Provided that an appeal may be filed if the plaint was dismissed irregularly. 207. Court fee must be paid when filing an appeal: (1) When filing an appeal, a receipt showing payment of the court fee leviable under the law must be submitted along with the appeal.

(2) Notwithstanding anything written in sub-section (1), if permission was granted by the court to pay the court

fee at the time of the judgment, the appeal shall be registered even without the receipt of court fee deposit. 208. Format of the appeal petition: (1) A person wishing to file an appeal must prepare the appeal in the format as per Schedule-21.

(2) When filing an appeal, the appeal petition must be written in courteous language, and necessary documents supporting the grounds of appeal must be attached to the appeal petition.

(3) When filing an appeal, an appeal fee of three hundred rupees shall be charged. 209.

Appeal must be registered in the appellate court: (1) When filing an appeal, the appeal petition must be registered in the appellate court of the court whose judgment is being appealed. (2) If someone brings an appeal for registration under sub-section (1), the court shall check whether such appeal has been brought for registration within the period under section 205, whether the fee leviable for the appeal has been deposited, and whether the appeal complies with the formalities under this Chapter; if it appears that the formalities are complied with, it shall be registered, and a receipt shall be given to the concerned party in the format as per Schedule-3. (3) If, upon checking the appeal under sub-section (2), it appears that the formalities are not complied with, the court shall, without registering the appeal petition, reject it, stating the reason thereof. 210.

Appeal may be registered in the court that rendered the judgment: (1) Notwithstanding anything written in section 209, an appeal petition may also be registered through the court that rendered the judgment. (2) If an appeal is brought for registration under sub-section (1), such court must complete the procedure under section 209 and register the appeal petition. (3) The appeal petition registered under sub-section (2) must be sent, along with the relevant case record, to the appellate court within three days. (4) If the appellant registering the appeal petition under this section wishes to remain on date, the court must fix a date for appearing in the relevant appellate court and send the appellant accordingly. 211.

Government employee may register an appeal in the court of the area where posted: (1) If a government employee needs to appeal in a case concerning their rights, interests, and concerns, and due to official duties they are unable to personally appear before the appellate court, they may register the appeal through the appellate court located in the area where they are posted, if such a court exists; or, if no such court exists, through the District Court of the area where they are posted, stating the reason for their inability to appear. (2) If an appeal is brought for registration under sub-section (1), such court must complete the procedure under section 209 and register the appeal. (3) Upon registration under sub-section (2), the court registering the appeal petition must, within three days, certify that the appeal petition has been registered and that the concerned employee is posted in that area, and send such appeal to the relevant appellate court. (4) If the government employee filing an appeal under this section wishes to be on date, the court registering the appeal must keep the employee on date and send information thereof to the relevant appellate court. 212.

Calling for the case record: (1) The appellate court must, within three days of the registration of the appeal, send a letter to the concerned court to call for the record of that case. (2) Upon a request for the record under sub-section (1), the concerned court must send the record to the appellate court within three days of receiving the letter. 213. Ordering the respondent to appear: (1) The appellate court must, within fifteen days of receiving the record from the lower court under section 212, summon the respondent as requested by the appellant and conduct a hearing on whether the case needs to be heard or not. (2) If, during the hearing under sub-section (1), it does not appear that the decision of the lower court is liable to be altered, the appellate court shall make a decision as deemed fit. (3) If, during the hearing under sub-section (1), it appears that the decision of the lower court may be liable to be altered, the appellate court shall, stating the reason thereof, order the summoning of the respondent for a full hearing. 214.

Service of notice to the respondent: (1) If an order is made to summon the respondent under sub-section (3) of section 213, the appellate court must serve a notice on the respondent in the format as per Schedule-22, requiring appearance within fifteen days, excluding travel time. (2) Notwithstanding anything written in sub-section (1), the appellate court, if it so desires, may serve the notice under sub-section (1) itself or through the trial court, following the procedure under Chapter-8. (3) After the notice is served under sub-section (2), the respondent may, if they wish, submit a written reply in the appellate court. (4) If the respondent wishes, the court may place them on date and proceed with the conduct, hearing, and decision of the case. 215. Hearing of the appeal must be conducted: (1) After the notice is served under section 214, if the respondent appears and both the appellant and the respondent are on date, the court shall fix a date for hearing and hear the appeal on that date; if both or either of them is not on date, the court shall still fix a date for hearing and conduct the hearing of the appeal. (2) Even if the respondent does not appear after the notice is served under section 214, the appellate court must hear the appeal. (3) After hearing the appeal under sub-section (1) or (2), the appellate court must make a decision as deemed fit. (4) When rendering a judgment on an appeal, the appellate court must do so in the format as per Schedule-23. 216. Powers of the appellate court: While hearing an appeal under section 215, the appellate court shall have the power to do the following: (a) Confirm or reverse the judgment of the lower court, (b) Set aside the judgment of the lower court, either partially or wholly, (c) If the judgment was rendered without examining necessary evidence, to examine such evidence itself or order the lower court to examine it, (d) If the decision did not address the issues that ought to be determined in the case, to determine such issues itself or send the case back to the lower court for determination of such issues, (e) Make ancillary or consequential modifications to the judgment of the lower court. 217. Exercise of powers of the trial court: While conducting, hearing, or deciding a case in an appeal under this Chapter, the appellate court may exercise the powers of a trial court. 218.

Chapter-20

Provisions Relating to Review and Revision of Cases

219. Review of cases: (1) In cases where an appeal does not lie to the Supreme Court according to law, the Supreme Court may review a judgment or final order rendered by a High Court in the following circumstances:

Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.(a) If the judgment or final order of the High Court contains a serious constitutional or legal error,

(b) If the legal principles or precedents established by the Supreme Court have not been followed, or have been misinterpreted and applied incorrectly,

Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.(c) In a case involving a dispute related to government or public property, if, due to improper evaluation of the evidence attached to the record, there has been embezzlement of or damage to government or public property, or

(d) If a child, woman, person with disability, person suffering from mental illness, or a person who has completed the age of seventy-five years could not be properly represented, materially affecting the justice.

(2) A petition for review of a case may be filed, within forty-five days from the date of knowledge of the judgment rendered by the High Court, through the High Court that rendered such decision or directly to the Supreme Court.

(3) A petition filed under sub-section (2) must be accompanied by Amended by the Act to Amend Some

Nepal Acts Relating to the Civil Code, 2018. details and documents substantiating the existence of the condition under sub-section (1).

(4) Upon receiving a petition for review under sub-section (2), the Supreme Court shall conduct a hearing on whether the condition under sub-section (1) exists in the judgment or final order of the High Court.

(5) If, during the hearing under sub-section (4), it appears that any condition under sub-section (1) exists in the judgment or final order of the High Court, the Supreme Court shall issue an order summoning the other parties to that case for the review.

(6) Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018. If the other parties to the case appear under sub-section (5), the Supreme Court shall keep them as well and hear the case and render a judgment. Provided that the failure of other parties to the case to appear shall not hinder the rendering of a judgment in the case. 220.

Provisions relating to Revision: (1) A case already decided by a final judgment or order of any court shall not be revised by the same court. (2) Notwithstanding anything written in sub-section (1), the Supreme Court may, subject to the prevailing law, revise its own judgment or final order in the following circumstances: (a) If any evidence or fact of a nature that would materially affect the justice rendered in the case comes to the knowledge of the concerned party or is discovered by any other means only after the case was decided, or (b) If it appears that the judgment or final order is contrary to the precedents or legal principles established by the Supreme Court. Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018. (3) A petition for revision must be filed within sixty days from the date on which the judge of the Supreme Court signed and certified the judgment or final order. Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018. (4) Upon a petition filed under sub-section (3), a judge other than the judge who initially rendered the judgment shall pass an order granting or refusing permission. (5) The Supreme Court shall not revise its own judgment or final order in the following circumstances: (a) If such judgment or final order has already been revised once, (b) If the judgment or final order was rendered by a full bench, (c) If the decision was made by the Constitutional Bench, (d) If the case was decided by review under the law prevailing before the commencement of this Code, or (e) In a case reviewed under section 219, if the judgment of the High Court was confirmed, or if leave to review was not granted. 221. Decision must be limited to the relevant subject matter: When reviewing a case under section 219 or revising under section 220, the Supreme Court must decide the case by limiting itself only to the basis on which the order for review or revision was made and the relevant subject matter related thereto. Chapter-21 Provisions Relating to Extension of Time or Date 222. Time or date must not be missed: No person shall miss the time limit or date given by the court in connection with any case. 223.

Missed time or date may be extended: Notwithstanding anything written in section 222, if, due to circumstances beyond one's control, a person is unable to appear in court on the prescribed time or date and thus misses the time or date, the party missing it may apply for an extension once within fifteen days for a time limit and up to twice within twenty-one days for a date. 224. Counting of occasions: (1) When counting occasions for missing a date, the count of an extension of time limit shall not be made; only the missing of the date shall be counted. (2) When calculating the days for seeking an extension for a missed time limit or date, the calculation shall be made from the day following the day the time or date was missed up to the day the extension is permissible. (3) Notwithstanding anything written elsewhere in this section, if a case is sent back to a subordinate court for retrial or if an adjourned case is revived and proceedings are conducted, the previously extended time or date occasions shall not be counted. 225.

Circumstances for extension of missed time or date: (1) Notwithstanding anything written elsewhere in this Code, if a person files a petition in the concerned court stating that time or date was missed due to circumstances beyond their control as mentioned below, and seeks an extension within the following respective periods, the court shall pass an order extending such missed time or date: Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.(a) If a relative of the person required to appear in court dies and, according to tradition, the person has to observe mourning or similar bereavement themselves, within seven days, excluding travel time, from the date fifteen days have elapsed since the death of such relative, Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.(b) If the person required to appear in court is a woman who has given childbirth, within sixty days, excluding travel time, from the date of childbirth, Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.(c) If, within the period for appearing in court, the road was blocked by a river, landslide, or snow, or a curfew was declared, or public transport was not operating due to any other reason, within fifteen days, excluding travel time, from the date the road opened or public transport resumed, Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.(d) If a disaster such as an earthquake or volcanic eruption occurred within the period for appearing in court, within ten days, excluding travel time, from the date of such occurrence, Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.(e) If the person required to appear in court was abducted or held hostage by someone, within fifteen days, excluding travel time, from the date of release from such abduction or hostage, Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.(f) If the person required to appear in court is unconscious or unable to move due to an accident, or is unable to move due to a debilitating illness, and has been admitted to a hospital approved by the Government of Nepal for treatment, within fifteen days.

Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2018.(1A) In the circumstances mentioned in clauses (a) and (e) of sub-section (5), the concerned person shall, as far as possible, immediately inform the court thereof.

(2) A petition submitted for extending the missed time or date under sub-section (1) must be accompanied by necessary evidence substantiating the occurrence of the circumstance under that sub-section. 226. Substitution of parties in a case: (1) If, while proceedings of a case are ongoing in any court and before the judgment of such case is rendered, a party to the case dies, or remains unconscious or of unsound mind up to the period mentioned in clause (c) of sub-section (1) of section 225, or goes missing and misses the time or date fixed by the court, the guardian of such deceased, unconscious, or missing person, or if there is no guardian, the nearest relative, may file a petition before the court to extend the time or date and substitute the party in the case within twenty-one days, excluding travel time, from the date of such death, onset of unconsciousness, or missing.

(2) If, upon examining the petition filed under sub-section (1), the facts appear reasonable, the court may allow substitution in such case and extend the missed time or date. 227. Calculation of travel time: (1) When calculating travel time, the court shall calculate based on the actual days required to travel by rail or bus where regular transport service is available, and for places where such rail or bus service is not available, at the rate of one day for every fifteen kilometers.

(2) When calculating travel time under sub-section (1), a distance of less than fifteen kilometers shall be deemed as one day's travel time. Provided that no travel time shall be given for a total distance of less than fifteen kilometers. 228. Decision not to be made within the period allowed for extension: Even if a party to the case is absent on the prescribed time or date and misses the time or date, the case shall not be heard and decided until the period allowed for extension under section 223 or 225 has expired. Chapter-22

Provisions Relating to Execution of Judgments

229. Preparation of execution list: (1) If a judgment is rendered by a court involving any of the following: delivery of possession, registration, cancellation, mutation, redemption, partition, recovery of dues, imposition of fines, or payment of court fees, the concerned officer shall, as soon as possible, prepare the relevant execution list within three days of the judgment being ready and send it to the Revenue (Tahsil) Section.

Explanation: For the purpose of this Chapter, "due" (bigo) shall mean any amount recoverable pursuant to the judgment, including any compensation.

(2) After the receipt of the execution list under sub-section (1), the concerned officer shall attach a copy of the judgment and create a separate record for the execution of the judgment.

(3) If the execution list under sub-section (1) is prepared by the appellate court, the concerned officer shall send such record, along with the execution list, to the concerned District Court within three days of the judgment being ready. 230. Execution of judgment or order by the concerned District Court: (1) Regardless of the level of court that rendered the judgment in a case, the execution of such judgment shall be carried out by the District Court where the plaint or complaint was filed.

(2) The execution of a judgment in a case initially heard and decided by an appellate court shall be carried out by the concerned District Court.

(3) Notwithstanding anything written elsewhere in this section, if the District Court responsible for executing the judgment or order cannot be determined due to the subject matter of the case, the District Court designated by the appellate court shall execute such judgment or order.

(4) Notwithstanding anything written elsewhere in this section, the execution of a judgment or order rendered by a body other than a regular court shall be carried out by the concerned body.

(5) Notwithstanding anything written in sub-section (4), if the law does not otherwise provide regarding the execution of a judgment or order, the court shall execute the judgment in accordance with this Code.

(6) If a judgment or order is rendered by a court to appoint someone to a position or to remove someone from a position, unless otherwise provided in this Code or prevailing law, the court rendering such judgment or order must, within three days of such judgment or order, send a letter to the concerned body or office for execution.

(7) Upon receiving a letter under sub-section (6), the concerned body or office must, within thirty days, implement it as per the letter and inform the concerned court thereof. If such information is not given, the court may order departmental action against the person acting as the chief of the concerned body or office. 231.

Stay of execution of judgment: Notwithstanding anything written in section 230, the court must stay the execution of a judgment in the following circumstances: (a) Until the period for filing an appeal, if an appeal lies, has expired, (b) In cases where an appeal may be filed according to law, if an appeal has been filed, until the final decision of the case through the appellate process, (c) If an order for review of the case under section 219 has been made, until the final decision thereof, (d) If an order for revision under section 220 has been made, until the final decision thereof. 232. No bar to execution of judgment or compromise: Notwithstanding anything written elsewhere in this Chapter, there shall be no bar to the execution of a judgment or compromise in the following circumstances: (a) To execute a judgment rendered in a case

merely on the ground that a petition for revision or review of the judgment is pending, unless the court has ordered otherwise, (b) To execute a judgment or compromise rendered in a case, even if someone has filed a suit to annul the judgment or compromise, unless the court has ordered otherwise, (c) If it appears that the property which is the subject matter of the case may deteriorate if execution is not carried out immediately, or if, in a case involving payment of compensation, the winning party expresses a written commitment to bear the compensation for loss caused to the other party if the case is lost later at the appellate level, the court may execute such judgment after the initial judgment, even before the expiry of the appeal period or the decision on appeal, (d) If there is an agreement between the parties to a case on any matter pending in court, and the agreed matter is severable and executable, and an order to that effect is made by the court. 233. Appointment of a representative: If any party to the case is unable to appear personally in the course of execution of a judgment, such party may appoint a representative for that purpose. 234. Opportunity for compromise or mediation: (1) Notwithstanding anything written elsewhere in this Chapter, if the parties wish to execute the judgment through the means of a compromise or mediation, they may submit a joint petition to the court stating that fact.

235. Parties to be placed on date: (1) If a trial court renders a judgment involving the delivery of possession, registration, cancellation, mutation, redemption, partition, or recovery of dues, and the parties to the case are present in the court, the court must, for the purpose of execution, fix a date for the parties after deducting the period allowed for appeal in such case.

(2) If an appeal is filed in such case by the date fixed under sub-section (1), the court shall cancel the dates of the parties and place the record of such case in storage, pending the judgment of the High Court.

(3) After a final judgment has been rendered, including by the appellate court, if the parties to the case are present in court as per sub-section (1), the appellate court shall fix a date for the parties to appear for the purpose of execution; if the parties are not present, it shall state that fact and send the record of the case to the concerned trial court.

(4) If the parties come to appear in the trial court under sub-section (3), the court must place the parties who are present on date for the purpose of execution of the judgment.

(5) If the appellate court writes under sub-section (3) stating that the parties are not on date, or if the parties do not come to appear in court on the fixed date, or if the case becomes final without an appeal against the trial court's judgment, and if any party to the case is not present in court, the trial court must send a notice for appearance in court, with a period of fifteen days in the format as per Schedule-24, to the parties for the purpose of execution of the judgment. Provided that if both parties or any party is not on date, such notice must be sent to the absent party within three days of receiving the record.

(6) Notwithstanding anything written elsewhere in this section, if it appears unnecessary to place any party on date in the course of execution of the judgment, the court shall not place such party on date. 236.

Execution of judgment after levying additional fee: (1) If a notice has been issued under this Code, and after the notice period has expired, or if a time or date has been missed, and after the period for substituting a party or extending the missed date has expired, the party comes to get the judgment executed, the court must execute the judgment by levying an additional fee of ten percent if the notice period has been exceeded by up to six months, and twenty-five percent if exceeded by up to one year, of the fee chargeable for execution. (2) If the party does not appear to get the judgment executed even within the period under sub-section (1), the court shall place the proceedings related to the execution of such judgment in storage,

unless otherwise provided in this Chapter. 237. Right to substitute or extend missed date: (1) If any party to the case dies in the course of execution of the judgment, the heir of such party may substitute the party in such case according to this Code. (2) If any party misses a date in the course of execution of the judgment, such party may get the missed date extended according to this Code. 238.

Procedure for delivery of possession: (1) For the execution of a judgment by delivery of possession, the person entitled to possession must deposit in the court, before the bailiff is dispatched, an amount equal to three percent of the value of the property to be delivered if the value is specified, or one thousand rupees if the value is not specified. (2) Upon payment of the amount by the person entitled to possession under sub-section (1), the court shall, on the day of payment itself, fix the day for dispatching the bailiff for delivery of possession, and fix a date for the parties to appear at the place of delivery of possession, along with a notice thereof; if the party from whom possession is to be taken is not on date, the court shall also provide information of this fact to such party within seven days. (3) When fixing the date or giving notice under sub-section (2), if the property to be delivered is a house or land, a notice to vacate such house or land within seven days must also be given. (4) If the property to be delivered is in the possession or control of a person other than a party to the case, the court must also notify such person to appear at the place where the bailiff will be dispatched. (5) On the date fixed under sub-section (2), the court shall dispatch a bailiff and cause the delivery of such property according to the judgment. (6) If the direction or side of a house or land to be delivered according to the judgment is not specified, the court shall, keeping the parties present, separate the property by adjusting high and low quality, conduct a lottery, and deliver possession of such house or land. (7) When delivering possession under this section, the court must keep present a representative of the local level and at least two witnesses, along with the parties (or their representatives) giving and taking possession, to the extent they are present. (8) If the person from whom possession is to be taken or any other person obstructs or opposes the delivery of possession, the court must use necessary force and cause the delivery of possession. (9) Notwithstanding anything written elsewhere in this section, if someone has locked a house or shop to be delivered by keeping property inside, the court must get the lock opened if the person in possession or control of the house or shop is present, and deliver possession; if such person is not present, a notice must be pasted on the door of such house or shop in the format as per Schedule-25, stating that the lock will be opened within seven days for delivery. (10) If the concerned person does not open the lock of the house or shop within the period under sub-section (9), the court shall, as soon as possible after the expiry of such period, open such lock and deliver possession of the house or shop. (11) If any property is found inside the house or shop during the process of delivery under this section, the court may immediately prepare an inventory of such property and take it under its control. (12) The court must paste a seven-day notice at the location of such house or shop, informing the concerned person to come and collect the property taken under control under sub-section (11) within thirty-five days; if the property is not collected within the given period, the court shall auction such property and pay the proceeds immediately to the concerned person. (13) If the proceeds from the auction of property under sub-section (12) are not immediately collected by the concerned person, the court shall deposit such amount in a deposit account. (14) If the concerned person comes to collect the amount deposited in the deposit account under sub-section (13) within one year, the court shall deduct ten percent of the amount and return the remaining amount to such person. (15) If the concerned person does not come to collect such amount within the period under sub-section (14), the court shall deposit such amount in the government fund. (16) If anyone disturbs the possession of property once delivered by the court without surrendering possession, the court may impose a fine of up to twenty-five thousand rupees or imprisonment for up to three months for each instance of (18) If any person fails to show or deliver the property under their responsibility mentioned in the schedule, a fine of five percent of the value

of such unshown or undelivered property shall be imposed. (19) In a case where a final judgment has been made holding that the plaintiff is entitled to a share, if any other defendant co-sharer also files an application to have their share separated, the court shall, upon collecting the court fee as per law, separate and provide the share from the property determined by the judgment. (20) If the immovable property to be partitioned under this section is also located in another district, the court shall also send a letter to the relevant court for the partition of such property. (21) Upon receiving a letter pursuant to subsection (20), the relevant court shall also partition such property under this section and provide information thereof to such court. (22) If, while a case is pending in court or after a judgment in such case but before its execution, any person transfers the property to be partitioned, or a new co-sharer joins, or a share is reduced, no fresh plaint need be filed for that purpose; and in such a situation, if an application is made to the court, the court shall, after inquiring into the truth of such application, proceed to partition the share. (23) When a share is partitioned and separated under this section, a fee at the rate of two point five percent of the value of the property so partitioned shall be levied.

242. Procedure for recovering the amount: (1) In the course of recovering the amount as per the judgment, if the party entitled to recover the amount is present on the date fixed under section 235, the court shall obtain a statement from such party as to whether they wish to recover the amount or not.

(2) When obtaining a statement under subsection (1), if the party entitled to recover the amount does not wish to do so, the court shall, after explaining the consequences arising from not recovering the amount, conclude the matter relating to execution of the judgment on the same day and strike off the record of the amount.

(3) When obtaining a statement under subsection (1), if the party entitled to recover the amount wishes to do so and the party liable to pay the amount is present, the court shall grant such party a period of up to thirty-five days to pay the amount due under the judgment.

(4) Within the time granted under subsection (3), the party liable to pay the amount must deposit the amount corresponding to the recovery in court by cash, a good-for-payment cheque issued by a bank, or any other means.

(5) Notwithstanding anything written in subsection (4), the party liable to pay the amount may request the court to recover the amount from any of their property.

(6) If the party liable to pay the amount does not appear in court, or, even if appearing, fails to pay the amount within the time under subsection (3), does not show property under subsection (5), or if the amount cannot be recovered from the property so shown and the party entitled to recover does not consent, the party entitled to recover may file an application in court showing other property of the party liable to pay, seeking recovery of the amount from such property.

(7) When recovering the amount under this section, if any property needs to be attached, the court shall attach such property and, if necessary, auction sell such property as well, and cause the amount to be recovered.

(8) If, when auctioning property under subsection (7), an amount greater than the recovery amount is obtained, the court shall immediately refund such excess amount to the party liable to pay, if present.

(9) If the relevant party fails to receive the amount under subsection (8), the court shall deposit such amount in the deposit account.

(10) If the relevant person does not come to receive the amount deposited in the deposit account under subsection (9) within one year, such amount shall be confiscated to government revenue.

(11) If the property from which the amount is to be recovered is located in another district, the court shall send a letter to the relevant court for recovery.

(12) Upon receiving a letter under subsection (11), the relevant court shall also recover the amount under this section and provide information thereof to such court.

(13) Notwithstanding anything written elsewhere in this section, if the person entitled to recover the amount discovers property that has been concealed or hidden by the person liable to pay the amount and brings it while the latter is still alive, the court shall auction such property and pay to such person an amount up to the recovery amount due.

(14) For providing recovery of the amount under this section, the court shall collect a fee of three percent of such amount from the person receiving the recovery.

(15) In connection with recovering the amount of any person under this section, if the party by whom the amount is to be paid files an application in court for the facility to pay the full or remaining amount in installments by submitting a bank guarantee from a commercial bank, and if the relevant party entitled to recover the amount consents thereto, the court may allow recovery of such amount in installments.

243. Property liable to attachment: (1) When attaching property for the amount under section 242, such property shall be attached including the share of the person who, being twelve years of age or older, uses or enjoys such property while living together undivided, or even if separated by share or portion, remains with the person using or enjoying such property.

(2) When attaching under subsection (1), after separating the following properties, the remaining property shall be attached:-

(a) If any property exists as the personal property of a person other than the person against whom attachment is made, such property,

(b) Up to three sets of clothing and footwear worn and to be worn by the person against whom attachment is made and the members of their joint household,

(c) One set of cooking and eating utensils, plates and bowls, one set of bedding and mattresses, and a reasonable number of furniture necessary for the person against whom attachment is made and the members of their joint household,

(d) Books necessary for the education of the person against whom attachment is made and the members of their joint household,

(e) Medicines and health-related equipment already purchased prior to the initiation of attachment proceedings for the person against whom attachment is made and the members of their joint household,

(f) Food grains necessary for the subsistence of the person against whom attachment is made and the members of their joint household for a maximum period of three months,

(g) One set of tools or implements related to the profession or occupation of the person against whom attachment is made and the members of their joint household.

(3) Notwithstanding anything written in subsection (2), when setting aside property under clauses (b), (c), (d), (e), (f), and (g) of that subsection, property worth more than one hundred thousand rupees shall not be set aside.

(4) If the recovery amount is still not satisfied after attachment under subsection (1), other members of the family shall not be arrested. 244.

Imprisonment for recovery of amount or fine: (1) If, even after auction sale of property under subsection (7) of section 242, the amount is insufficient, or if property is not shown, or if property cannot be auctioned, and the person entitled to recover the amount wishes to have the person liable to pay the remaining amount imprisoned, and files an application within fifteen days of the auction sale or the occurrence of the situation under this subsection, the court shall prepare a record thereof and send the person liable to pay the amount to imprisonment as per law. (2) When imprisoning under subsection (1), the court shall convert the remaining amount at the rate of four hundred rupees per day and imprison the person liable to pay that amount accordingly. (3) When imprisoning under subsection (1), in the case of recovery due to the Government of Nepal or a public entity wholly or substantially owned or controlled by the Government of Nepal, imprisonment shall not exceed four years, and in the case of recovery due to an individual or other entity, imprisonment shall not exceed two years. (4) When imprisonment is required under subsection (1), if the amount is less than four hundred rupees or if a remainder remains, imprisonment for one day shall be imposed for that amount. (5) When imprisoning under subsection (1), the subsistence expenses as per law shall be borne by the person seeking imprisonment. (6) When imprisonment is required for non-payment of a fine, imprisonment shall be at the rate of two hundred rupees per day, not exceeding four years. (7) Before imprisoning under this section, the relevant person shall be given a reasonable time to present their statement. (8) Notwithstanding anything written elsewhere in this Chapter, if a person who fails to pay the amount is imprisoned by order of the court for the remaining amount that could not be recovered as per the party's claim, no further claim shall lie regarding such amount. 245. Action upon death of person from whom amount is to be recovered: (1) If the person from whom the amount is to be recovered dies before such amount is recovered, the amount shall be recovered from the property belonging to that person. (2) If the amount cannot be recovered from the property of that person under subsection (1), the shortfall shall be recovered from the person who inherits the estate of the deceased. (3) Notwithstanding anything written in subsection (2), when recovering the amount from the person who inherits the estate, no more than the value of the inheritance received by such person shall be recovered. 246.

Remission of fine: If a person upon whom a fine has been imposed under a judgment pays the fine immediately or within sixty days from the date of the judgment, a twenty percent remission shall be granted on the fine imposed. 247. Execution of compromise: (1) If a compromise is made requiring a government body to do or cause to be done any act, the court shall, within three days of the compromise, send a letter to the relevant office to perform the act as per the compromise. (2) In a case where there are more than one plaintiff or defendant, even if all are not present to have the compromise executed, the compromise shall be executed after the expiry of the period under subsection (1). While executing the compromise in such manner, the court shall also protect the interest of the person who fails to appear to have the compromise executed. 248. Period for refund of court fee, deposit, and expenses: (1) Except as otherwise provided in this Code, the relevant person shall, within one year from the date of knowing that the judgment entitling them to a refund of court fee or deposit amount has become final, file an application with the relevant court along with proof requesting a refund. (2) If the amount claimed under subsection (1) is to be refunded, the court shall refund the court fee within three months of receiving such application, and the deposit amount within seven days. (3) Except as otherwise provided in this Code, the person entitled to receive or obtain a refund of the amount realized from an auction sale shall receive such amount within six months from the date of the auction sale. (4) If the relevant person fails to receive the court fee, deposit, or amount within the period under subsection (1) or (3), such amount or property shall not be refunded later, and such deposit amount

shall be confiscated to government revenue. 249. Fee for execution of judgment: (1) Except as otherwise provided in this Chapter, for any amount caused to be paid by the court under a judgment, a fee at the rate of five percent shall be collected from the person receiving such amount. (2) Notwithstanding anything written in subsection (1), no fee shall be levied for causing the delivery of a date, delivery of documents, or partition of a defendant. 250.

Right to complain: (1) Any interested person dissatisfied with the work or action performed by the relevant employee in the course of execution of a judgment may file a complaint before the judge of the same court within fifteen days. (2) A person dissatisfied with the decision made on a complaint filed under subsection (1) may file a petition in the appellate court. (3) A complaint filed under subsection (1) shall be resolved within one month, and a petition filed under subsection (2) within two months. (4) A party who, having received notice for appearance in execution proceedings, remains absent on the date fixed, shall not be entitled to file a complaint or petition under this section. 251. Proceedings not invalid merely due to absence of representative: (1) Under this Chapter, where any act is to be performed or signature or seal is to be obtained in the presence of a member or representative of a local level, if such member or representative fails to appear despite written notice given to secure their presence, such act may be performed or caused to be performed. (2) Merely on the ground that the member or representative of the local level under subsection (1) was absent or did not affix their signature or seal, any act or proceeding otherwise in conformity shall not become invalid. 252. Power to initiate contempt proceedings or impose punishment: (1) It shall be the duty of the parties to a case to cooperate in the act of executing a judgment under this Chapter. (2) The court may, against any person obstructing the execution of a judgment, initiate contempt proceedings as per law or impose a fine of up to one thousand rupees or imprisonment for up to three months, or both. 253. Employee entitled to incentive amount: (1) If a government employee deployed for the collection of a fine imposed under a judgment or government recovery does not wish to receive the daily and travel allowance payable, they shall receive an incentive allowance of twenty-five percent of the amount collected. (2) The Tehsildar shall receive, as an incentive, five percent of the amount collected under subsection (1). (3) The allowance or amount under subsections (1) and (2) shall be paid from the collected fine or government recovery amount. (4) Under this section, if any person other than a government employee has collected and brought in a government recovery or fine, such person may be provided the amount under subsection (2) equivalent to that of a government employee. Chapter-23 Provisions relating to civil cases where the Government is the plaintiff or a party 254.

Investigation and diary of civil cases where the Government is the plaintiff: (1) Any person wishing to file a civil case of the type mentioned in Schedule-28, and of the type which, under prevailing law, is stated to be filed with the Government of Nepal, Provincial Government, or local level as the plaintiff, shall submit a written application or oral information to the officer designated by the Government of Nepal by publishing a notice in the Nepal Gazette, or, if no officer is so designated, to the relevant District Revenue Officer, disclosing the evidence in their possession or to their knowledge regarding such case. (2) If oral information is given under subsection (1), the relevant officer shall reduce the statement of such person to writing in the form of an application and have it signed or sealed by them. (3) Upon receipt of an application under subsection (1), the relevant officer shall, as necessary, conduct a survey and map of the house or land related to the case or carry out an investigation into other necessary matters, and send the original and one copy of the case file and documents to the relevant Government Attorney of the district at least fifteen days before the expiry of the limitation period under the relevant law, taking into account the time required for deciding whether to file the case or not and, if a decision to file is made, the time required to prepare the plaint and file the case. (4) Even if no application has been received from anyone under subsection (1), if the

relevant officer themselves sees a reason to file a case under subsection (1), they shall collect necessary evidence and, after completing the procedure under subsection (3), send the documents along with the case file to the relevant Government Attorney of the district. (5) Upon receiving the case file under subsection (3) or (4), the Government Attorney shall study it and decide whether the case is to be filed or not. (6) If a decision is made to file a case under subsection (5), the Government Attorney shall prepare the plaint and file the case in the relevant court along with evidence. (7) If a decision is made not to file a case under subsection (5), the Government Attorney shall return the received case file and evidence to the relevant officer. 255. Case to proceed with Government as plaintiff: A case filed under section 254 shall proceed with the Government as the plaintiff. Provided that, in matters where a plaint must be filed under section 91, the same shall apply. 256.

Notice to be given if it appears that an individual should file the case: (1) If, upon studying the case file under subsection (5) of section 254, it does not appear that the case should be filed with the Government as plaintiff, but it appears that it should be filed by the person aggrieved under the law, the Government Attorney shall make a decision accordingly and inform the officer who sent the case file to give notice of that fact to the relevant person. (2) The limitation period under the law for the relevant person shall be calculated from the date of receipt of notice under subsection (1). 257. Making the interested person a party: If, during the proceedings of any case filed with the Government of Nepal, Provincial Government, or local level as the plaintiff under section 254, it appears that the Government of Nepal, Provincial Government, or local level should not be the plaintiff, the court shall issue an order to that effect and summon the interested person. If the interested person appears pursuant to the court's order and accepts the case, such person shall be made the plaintiff, and proceedings, hearing, and disposal shall be conducted from the same case file in accordance with prevailing law. 258.

Provisions relating to filing other civil cases: (1) Regarding the filing of civil cases other than those filed under section 254, or regarding the collection of evidence, if any officer is designated under the relevant law, such officer, and if no such officer is designated, the head of the relevant office shall collect evidence and send it along with their opinion and the case file to the relevant Government Attorney for a decision on whether to file the case or not, ensuring that the limitation period for filing the plaint is not exceeded. (2) Upon receiving the case file under subsection (1), the Government Attorney shall study it, decide whether to file the case or not, and if the case is to be filed, shall return the received case file to the relevant officer, specifying under which law, on what subject, and against whom the case is to be filed, ensuring that the limitation period for filing the case is not exceeded. (3) If the Government Attorney decides to file the case under subsection (2), the relevant officer shall prepare the plaint, sign or seal it, and file the case in the relevant court within the limitation period. (4) After filing the case under subsection (3), the relevant officer shall provide one copy of the case file related to such case to the Government Attorney. 259. Provisions relating to limitation: (1) If a civil suit is to be filed in the name of any person on behalf of the Government of Nepal, Provincial Government, or local level, if a limitation period for filing such suit is specified in this Code or other law, the suit shall be filed within that limitation period; and if no such limitation period is specified, the suit shall be filed within two years from the date on which the Government of Nepal, Provincial Government, or local level came to know of the cause of action for filing such suit. Provided that, if it is stated in this Code or other law that limitation does not apply, or that there is no limitation, or that a suit may be filed at any time, a suit may be filed at any time. (2) For the purpose of subsection (1), knowledge acquired by the relevant officer of the office of the Government of Nepal, Provincial Government, or local level shall be deemed to be knowledge acquired by the Government of Nepal, Provincial Government, or local level. 260.

Provisions relating to examining witnesses or presenting evidence: (1) In a case filed under section 254, the person lodging the complaint or giving information in relation thereto shall be deemed a witness on the plaintiff's side. (2) In cases filed under section 254 and in other civil cases where the Government of Nepal or Provincial Government is the defendant, the duty of presenting or making available witnesses or evidence through the Government Attorney on the day sought by the court shall be of the relevant officer. (3) In cases filed under section 254 and in any other civil case concerning the Government of Nepal or Provincial Government, the task of examining witnesses or presenting evidence shall be performed by the Government Attorney. (4) In cases filed under section 254, if it is necessary to examine a witness who cannot be dispensed with, such witness may be summoned and examined in the same manner as a witness who cannot be dispensed with in a criminal case.

261. Government Attorney to conduct arguments and defence: (1) The Government Attorney shall conduct arguments and defence in cases filed under section 254. (2) Except as provided in subsection (1), in civil cases where the Government of Nepal, Provincial Government, or local level is made the opposite party, or in civil cases filed by the Government of Nepal as plaintiff, upon request from the relevant body, Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075, the Government Attorney in the case of the Government of Nepal, and the attorney designated or appointed under prevailing law in the case of the Provincial Government and local level, may conduct arguments and defence.

262. Granting time: (1) In cases filed under section 254, the court shall grant a period of seventy days for filing an appeal. (2) If the period granted under subsection (1) expires and the relevant party, showing reasonable cause, files an application in court, Amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075, the court may extend the period by up to thirty days within the period that can be granted under Chapter-21.

263.

Authority to file appeal, review or revision petition: (1) In civil cases filed under section 254, the work relating to filing appeals, reviews, revisions, or petitions for such purposes shall be done by the Government Attorney in the case of cases where the Government of Nepal is the plaintiff, and by the attorney designated or appointed under prevailing law in the case of cases where the Provincial Government or local level is the plaintiff. (2) Except as provided in subsection (1), in civil cases where the Government of Nepal, Provincial Government, or local level is a party or opposite party, the relevant officer or the head of the office may themselves perform the work relating to filing appeals, reviews, revisions, or petitions for such purposes. Provided that, if the relevant officer or head of office sends a letter to the Government Attorney for such work, the Government Attorney may perform the work relating to filing appeals, reviews, revisions, or petitions in such cases.

264. Procedure for filing suit against the Government of Nepal: (1) If a suit is to be filed in a civil case against the Government of Nepal, Provincial Government, or local level, the interested person shall give notice thereof to the office or the head of such office against which the suit is to be filed. (2) Upon receiving notice under subsection (1), the relevant office or the head of such office shall, if it is necessary to obtain advice or clearance from another office or body, obtain such advice or clearance. (3) If, upon necessary investigation of the matter of the notice received under subsection (1), there exists any cause for filing a suit, the relevant office or the head of such office shall, within thirty days from the date of receipt of such notice, inform the relevant person thereof with clear reasons. (4) If the relevant office or the head of such office fails to provide any information on the matter within the period under subsection (3), or if, even after providing information that a suit may be filed, the reason therefor does not appear reasonable, the relevant person may file a suit within thirty-five days from the expiry of such period or from the date of receipt of such information.

265. Other matters to be as per the Code and law: In relation to civil cases where the Government of Nepal, Provincial Government, or local level is the plaintiff or a party, matters written in this Chapter shall be as per this Chapter, and matters not written in this Chapter shall be as per other Chapters of this Code and the law.

Determination of compensation: (1) In a case where compensation can be obtained under the law, if the relevant person has claimed compensation, the court shall, while deciding the case, determine the compensation. (2) Except where otherwise provided by law, while determining compensation under subsection (1), the following matters shall be considered:- (a) Actual loss or damage incurred as a result of the harm, (b) Loss or damage in income caused by the harm, (c) Additional loss or damage suffered as a result of the harm. (3) While determining compensation under subsection (1), the actual damage caused by the violation of any person's right or interest, or the actual damage caused or likely to be caused thereby, shall be ascertained and compensation shall be determined only on that basis; compensation shall not be determined on hypothetical matters. 267. Person who may file a case on behalf of a minor, incapacitated, or missing person: (1) On behalf of a minor who has not attained the age under the law, a person who, although of age, is incapacitated due to old age, a blind person, a person unable to speak, a person not in their senses, or a missing person, or a person who is in a condition where they themselves cannot act, a guardian or next friend may file a plaint, written statement, appeal petition, or petition. Explanation: For the purpose of this section, "missing person" means a person who has left home without notice for three consecutive years, or a person who has gone abroad and whose whereabouts for return are unknown. (2) A guardian or next friend under subsection (1) shall file a separate application in court for permission to file a plaint, written statement, appeal petition, or petition on behalf of such person. (3) Upon receiving an application under subsection (2), the court shall first hear evidence to ascertain whether the person mentioned in the application is a minor, or, though of age, is incapacitated due to old age, blind and unable to speak, not in their senses, or missing; and if upon hearing, the applicant's statement appears reasonable, the court may grant permission for the guardian or next friend to file a plaint, written statement, appeal petition, or petition on behalf of such person, even in the absence of a power of attorney. (4) An application for permission under subsection (3) shall be decided within seven days from the date of filing. (5) Notwithstanding anything written in subsection (4), regarding filing a plaint, written statement, appeal petition, or petition on behalf of a missing person, the court shall decide on an application for permission within fifteen days from the date of filing. 268.

Hearing to be held in open court: (1) The court shall hold hearings of cases in open court. (2) Notwithstanding anything written in subsection (1), if the court finds reasonable the content of an application filed by a party to a case, disclosing reasons why a case relating to family relationship, determination of kinship, marriage, or divorce should be heard in camera, or if the court considers it reasonable that any case be heard in camera, the court shall order that such case be heard in camera. (3) If an order is made for hearing in camera under subsection (2), entry into such court shall be prohibited to persons other than the parties to the case or their representatives, legal practitioners appointed by the parties, and persons or employees ordered by the judge. (4) Notwithstanding anything written elsewhere in this section, if the court considers it reasonable to prohibit any person from entering the court for reasons of public security, the court may prohibit such person from entering the court. 269. Parties to be kept present: While hearing a case or determining matters to be decided, the parties shall be kept present. Provided that, even if any party is absent on the date fixed for hearing, it shall not be deemed to have hindered the decision or determination of the case. Deleted by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075.270. 271. Judge not to hear case where interest conflicts: (1) A judge shall not conduct proceedings, hearing, and disposal of the following cases:- (a) A case in which the judge themselves or their close relative has an interest, right, or concern.

Explanation: For the purpose of this section, "close relative" means a person in the priority order entitled to receive inheritance under the law when the estate is open, maternal uncle, maternal aunt, stepmother,

paternal aunt, younger paternal uncle, elder paternal uncle, father-in-law or mother-in-law on the husband's or wife's side, father's sister, father's sister's husband, wife's brother, elder sister's husband, wife's sister, elder sister, younger sister, elder sister's husband, younger sister's husband, daughter's husband, nephew (sister's son), niece (sister's daughter), niece's husband, niece's daughter-in-law, and members of the family of such relative. (b) A case in which the judge was at any time a representative, legal practitioner, or witness, (c) A case in which the judge, in the capacity of a judge, has decided or given a final order in any court, (d) A case in which the judge at any time gave an opinion on whether the case should be filed or not, (e) A case in which, for any other reason, the interest of the judge and the members of their joint household, or the interest of persons under clause (a), is fundamentally conflicted. (2) If any situation under subsection (1) is found, the judge hearing the case shall issue an order stating the reason why the case should not be heard. (3) If any judge is about to conduct proceedings, hearing, or disposal of any case contrary to subsection (1), any party to the case may, with necessary evidence, file an application not to conduct proceedings, hearing, or disposal. (4) Upon receiving an application under subsection (3), the judge hearing the case shall, before conducting proceedings, hearing, or disposal, ascertain whether the claim in such application is reasonable or not, and if the case should not be heard, shall issue an order accordingly. (5) If an order is made under subsection (2) or (4), if there is another judge in the same court, such judge shall hear the case; and if there is no such judge, stating the reason, the case file shall be sent to the nearest court of the same level for proceedings, hearing, and disposal, and a date shall be fixed for the parties to appear in that court. (6) Upon receiving the case file under subsection (5), such court shall, even if the case is not within its own jurisdiction, conduct proceedings, hearing, and disposal of such case. 272.

Acts to be performed by the judge themselves: (1) Among the acts to be performed by the court under this Code, the following acts shall be performed by the judge themselves:- (a) Recording the statement of a party, (b) Administering an oath to a witness, (c) Recording the deposition of a witness, (d) Making an interim or interlocutory order, (e) Preparing an order sheet on matters to be decided in the case, (f) Giving orders relating to taking evidence, (g) Conducting preliminary and pre-hearing discussions, (h) Holding hearings, (i) Effecting compromise, (j) Pronouncing judgment or giving any kind of final order. (2) Notwithstanding anything written in subsection (1), for the purpose of recording a statement or deposition, the judge may take the assistance of an employee available in the court, at least up to the level of non-gazetted first class, and if not available, up to the level of non-gazetted second class. 273. Translation of document required: (1) If any document written in a language other than Nepali is presented as evidence in court and it appears that such document should be translated into Nepali, the court may order the party presenting such document to translate it into Nepali and submit it. (2) If an order is made by the court under subsection (1), the relevant party shall have such document translated into Nepali and submit a certified copy thereof to the court. 274. Assistance of interpreter may be taken: (1) If it is necessary to record the statement or deposition of any party or witness who does not understand Nepali, or for any other purpose, the court may take the assistance of an interpreter of the relevant language. (2) When taking the assistance of an interpreter for a statement or deposition under subsection (1), the expenses incurred shall be borne by the relevant party. 275. May question parties at any time: (1) The judge may, at any time before the judgment is delivered, issue an order and question a party to the case on any matter of the case. (2) The answer given by the relevant party to the case upon being questioned under subsection (1) shall be attached to the case file. 276.

Identity of party or witness may be kept confidential: (1) Notwithstanding anything written elsewhere in this Code, if disclosing the identity of any party or witness may adversely affect the social reputation or dignity of such party or witness, or may cause undue fear, terror, or apprehension to such party from any side, or may adversely affect the personal safety or security of such party or witness, the relevant party may request the

court to keep confidential the name, surname, residence, or the names of the father and mother, or any other description that may identify such party or witness. (2) Upon request under subsection (1), the court may order that the name, surname, residence, names of the father and mother, or identity of such party or witness be kept confidential. (3) The name, surname, residence, or names of the father and mother, or identity of the person kept confidential under subsection (2) shall be published using a pseudonym, surname, residence, or identity as per the court's order during the hearing of the relevant case or when publishing related details.

277. Duty to be present and assist in signing or sealing: (1) Any person required to be present for any act or proceeding under this Code shall assist the court by being present, and any person required to sign or seal a document prepared by the court shall do so. (2) If any person refuses to be present or to sign or seal any document under subsection (1), and if, even after explaining the consequences of such refusal, they still refuse to be present or to sign or seal the document, the employee performing such act or preparing such document shall note the fact of such refusal, stating the reason for non-presence or non-signature, and after obtaining the signatures or seals of two other persons present, shall themselves also sign or seal and prepare the document. (3) A document prepared under subsection (2) shall be deemed to have been prepared in conformity with law. (4) A person who obstructs or fails to cooperate in the work of the court under this section may be fined by the court up to five thousand rupees.

278. Protection for acts done in good faith: No action shall lie against a judge or any other employee in respect of any act done in good faith under this Code or the rules made under this Code.

279.

Clerical or arithmetical errors not to affect validity: (1) In the course of adopting the procedure under this Code for the proceedings, hearing, and disposal of a case, the existence of minor errors or omissions of any kind, or minor arithmetical or other errors or omissions in writing, printing, or typing when preparing any document, shall not alone render the entire related work or proceeding unlawful. (2) If, while conducting proceedings, hearing, and disposal of a case or preparing a document under subsection (1), minor arithmetical or other errors or omissions occur in writing, printing, or typing, the judge may, by preparing a separate order sheet with reasons, correct such error or mistake in a manner that does not affect the merits of the case.

280. Receipt to be taken or given: (1) When returning any original document deposited in court to any person, or when delivering any original document from the court to any person, a receipt or voucher acknowledging the return or receipt of such document shall be taken and kept in the case file. (2) When the court receives any original document presented by any person, if there are any erasures or corrections in the document, the court shall give a receipt to the person presenting the document, mentioning such details as well.

281. Petition fee: Except as otherwise provided in this Code, a fee of ten rupees shall be charged when submitting any petition to the court.

282. Publication of notice or summons: When publishing any notice or summons from the court under this Code in a national daily newspaper, it shall be published on a day determined by the Supreme Court in a national daily newspaper published by an entity owned by the Government of Nepal.

283. Power to order departmental action: (1) Except as otherwise provided in this Code, if any employee having the duty to perform an act under this Code fails to Translation of Nepali Legal Text into English If you do not submit a reply within the stipulated period and appear either in person or through a representative or legal practitioner, the case will be decided according to law, and you shall have no right to any complaint on that matter in the future.

Of the officer issuing the Summons/Notice, -

Signature :

Name :

Position :

Date :

Date of Service :

(a) Where the Summons/Notice has been received by the person required to receive it

I, the undersigned , having received one copy of the Summons/Notice and a copy of the Complaint issued in my name in the matter of in the presence of the witnesses mentioned hereunder, do hereby sign.

(b) Where the Summons/Notice has been received by a member of the immediate family of the person required to receive it

I, the undersigned , being the (relationship) of the person named in the Summons/Notice , aged years, of the same household, have received one copy of the Summons/Notice and a copy of the Complaint in the name of the said person in the matter of , as the person required to receive the Summons/Notice refused to accept it / could not be found, in the presence of the witnesses mentioned hereunder, and do hereby sign.

(c) Where the Summons/Notice has been affixed at the doorstep of the person required to receive it

We, the undersigned persons, do hereby sign and state that in the matter of , the person named in the Summons/Notice and any adult member of his/her immediate family could not be found at home / refused to receive the Summons/Notice, and therefore we, in the presence of the witnesses mentioned hereunder, have affixed one copy of the Summons/Notice and a copy of the Complaint in his/her name at the doorstep of his/her house in a conspicuous manner, and have also delivered one copy to Ward No. of the Rural Municipality/ Municipality, and this is correct.

(d) Amended by the notice published in the Nepal Gazette dated 2075.05.01.Ø Where the Summons/Notice has been served without finding the person required to receive it at home

We, the undersigned persons, do hereby sign and state that in the matter of , the person required to receive the Summons/Notice or his/her house could not be found after search, and therefore we have affixed one copy of the Summons/Notice in his/her name at a public place (specify place) of the concerned Ward or locality, and have sent back the copy of the Complaint and the served Summons/Notice. Witnesses

We, the undersigned, do hereby sign and state that the Summons/Notice was served in our presence as per clause () above. 1. Shri , aged , residing in Village/Tole , Ward No. , Rural Municipality/Municipality, District. 2. Shri , aged , residing in Village/Tole , Ward No. , Rural Municipality/Municipality, District. 3. Shri , aged , residing in Village/Tole , Ward No. , Rural Municipality/Municipality, District.

In the presence of Shri/Mrs. , Member/Secretary/ of the Rural Municipality/Municipality, District. Where affixed at the doorstep / where the village, city or locality is not found I, the undersigned, do hereby sign and state that one copy of the Summons/Notice in accordance with this has been submitted to be affixed on the notice board of the office of this Ward No. of the Rural Municipality/ Municipality. Signature : Name of Employee or Officer : Date : Of the person performing the service, - Signature : Name of Server : Date : Schedule-7 (Relating to Sub-section (2) of Section 103) Form of Summons/Notice to be issued in the name of a person other than the Defendant Summons/Notice issued from Court/Office To you, Shri , son/daughter/husband/wife of , aged years, residing in Village/Tole , Ward No. , Rural Municipality/Municipality, District. Whereas it is necessary to inquire into certain matters in connection with the case of wherein is the Plaintiff and is the Defendant, you are hereby notified to appear in person or

appoint a representative or legal practitioner according to law and send to this Court/Office within seven days, excluding the time for journey, from the date of receipt of this Summons/Notice or from the date of its lawful affixation. If you fail to appear within the stipulated period or fail to send a representative or legal practitioner, the case will be decided according to law, and you shall have no right to any complaint on that matter in the future.

Of the officer issuing the Summons/Notice, - Signature : Name : Position : Date : Time : Date of Service : (a) Where the Summons/Notice has been received by the person required to receive it I, the undersigned , having received one copy of the Summons/Notice and a copy of the Complaint/Reply/ issued in my name in the matter of in the presence of the witnesses mentioned hereunder, do hereby sign. (b) Where the Summons/Notice has been received by a member of the immediate family of the person required to receive it I, the undersigned , being the (relationship) of the person named in the Summons/Notice , aged years, of the same household, have received one copy of the Summons/Notice and a copy of in the name of the said person in the matter of , as the person required to receive the Summons/Notice refused to accept it / could not be found, in the presence of the witnesses mentioned hereunder, and do hereby sign. (c) Where the Summons/Notice has been affixed at the doorstep of the person required to receive it We, the undersigned persons, do hereby sign and state that in the matter of , the person named in the Summons/Notice and any adult member of his/her immediate family could not be found at home / refused to receive the Summons/Notice, and therefore we, in the presence of the witnesses mentioned hereunder, have affixed one copy of the Summons/Notice and a copy of in his/her name at the doorstep of his/her house in a conspicuous manner, and have also delivered one copy to Ward No. of the Rural Municipality/ Municipality, and this is correct. (d) Where the Summons/Notice has been served without finding the person required to receive it We, the undersigned persons, do hereby sign and state that in the matter of , the person required to receive the Summons/Notice or his/her house could not be found after search, and therefore we have affixed one copy of the Summons/Notice in his/her name at a public place (specify place) of the concerned Ward or locality, and have sent back the copy of and the served Summons/Notice. Witnesses We, the undersigned, do hereby sign and state that the Summons/Notice was served in our presence as per clause () above. 1. Shri , aged , residing in Village/Tole , Ward No. , Rural Municipality/Municipality, District. 2.

Shri , aged , residing in Village/Tole , Ward No. , Rural Municipality/Municipality, District. 3. Shri , aged , residing in Village/Tole , Ward No. , Rural Municipality/Municipality, District. In the presence of Shri , Member/Secretary/ of the Rural Municipality/Municipality, District. Where affixed at the doorstep / where the village, city or locality is not found I, the undersigned, do hereby sign and state that one copy of the Summons/Notice in accordance with this has been submitted to be affixed on the notice board of the office of this Ward No. of the Rural Municipality/ Municipality. Signature : Name of Employee or Officer : Date : Of the person performing the service, - Signature : Name of Server : Date : Schedule-8 (Relating to Sub-section (2) of Section 113) Form of Receipt for Summons received by a Representative or Legal Practitioner I have received the summons issued in the name of , the Defendant, for the purpose of delivering it to him/her, in the case of (Case No. of the year) filed on at Court/Office wherein is the Plaintiff and is the Defendant, for filing a reply, and I hereby grant this receipt. Of the Representative/Legal Practitioner receiving the Summons, - Signature : Name : Certificate Number : Address : Date : Time : Schedule-9 (Relating to Section 120) Form of Reply (To be filled by Court/Office) Registration No.: Registration Date: Reply Filed in Court/Office Year , Case Registration No. Defendant: , son/daughter/husband/wife of , aged years, residing at (If there are more than one Defendant, mention details for each Defendant accordingly.) Vs. Plaintiff: , son/daughter/husband/wife of , aged years, residing at (If there are more than one Plaintiff, mention details for each Plaintiff accordingly.) Case :- Whereas the summons issued in my/our name in the aforementioned

case against the opposite party was received from the Plaintiff/Legal Practitioner/Court on , I/we hereby appear and submit the following reply in respect of the claim in the complaint. 1. Regarding the matters claimed by the Plaintiff, I/we set out the true facts as follows in the paragraphs below: (a) (b) (c) (d) (e) 2. I/we accept the claim in the complaint fully or partially. (I/we do not accept). (If the claim is partially accepted, state the basis and reason for acceptance.) 3. If any counterclaim, specify: (a) (b) (c) 4.

If a plea is taken that the Plaintiff has no right to file the suit / the suit is barred by limitation / the Court has no jurisdiction, state the basis and reason thereof. 5. Whether the decision of the Court should be in accordance with the claim in the complaint or not. 6. If a legal practitioner has been appointed, details thereof: (a) Name Certificate No (b) Name Certificate No (c) Name Certificate No 7. I/we have brought the following fees to be submitted herewith: (a) For Rs. (b) For Rs. 8. Evidence: I/we have attached copies of the following evidentiary documents in this matter. (a) (b) (c) 9. Witnesses:- (a) (b) (c) (Full name, age and address of witnesses) 10. The contents written herein are true and correct; if found false, I/we shall be liable to bear the consequences according to law. Signature of the person filing the Reply and seal of the organization if it is an incorporated body Dated this day of month of the year , auspicious. Note: When submitting a reply on behalf of an incorporated body, the name and address of such body and the name, surname and position of the person authorized to submit the reply on behalf of such body must be mentioned. Schedule-10 (Relating to Sub-section (4) of Section 137) Form of Date Book Date Book maintained in Court/Office Year Month, Day, Day of week S.No. Case Name of Appellant/Plaintiff/Defendant/Petitioner Name of Respondent/Defendant/Plaintiff Purpose for which date is fixed Remarks Signature Schedule-11 (Relating to Sub-section (4) of Section 137) Form of Date Slip Date Slip issued from Court/Office In the name of Date Slip In the case of Civil Docket No. of the year 20 , vs. , a date has been fixed for (purpose) on the of Vikram Samvat , and this date slip is given to appear at o'clock on that day. Signature of the officer fixing the date : Name : Date : Schedule-12 (Relating to Sub-section (4) of Section 138) Form of Date Receipt Date Receipt maintained in Court/Office Plaintiff Defendant Case Amended by the notice published in the Nepal Gazette dated 2075.05.01.ØCase No. : On date I, the undersigned , do hereby sign that I will appear in this Court/Office at o'clock on date as the case is to be listed in the cause list on that date / as work is to be done.

Plaintiff

Defendant

Schedule-13

(Relating to Sub-section (1) of Section 146)

Amended by the notice published in the Nepal Gazette dated 2076.04.20. Form of Power of Attorney

In the case of with residing at , I have appointed , aged years, residing at , Citizenship No. / (Year and District of issuance of citizenship) , as my representative by granting this Power of Attorney to perform the work of (specify purpose) on my behalf. The said representative is qualified to be a representative according to law. I have no outstanding penalty, fine, court fee, government dues or any fees imposed by the court according to law. The above written contents are true; if found false, I agree that this Power of Attorney shall be cancelled and action taken according to law. Date

Signature/Thumbprint /Seal of incorporated body, if any : (Signature/Thumbprint)

Full Name Surname :

Full Address :

I agree to act as representative for the work mentioned above on behalf of residing at , aged years, Citizenship No. (Year and District of issuance; if an incorporated body, name and address of such body). I shall perform that work honestly. I have no outstanding penalty, fine, court fee, government dues or any fees imposed by the court according to law. I am qualified to be a representative according to law. Date

Signature/Thumbprint : (Signature/Thumbprint)

Full Name Surname :

Full Address :

Witnesses:

This Power of Attorney is truly written and signed/thumb-printed in our presence.

(1) Shri , aged years, residing at , Citizenship/Passport or similar other details, number and issuing district

(2) Shri , aged years, residing at , Citizenship/Passport or similar other details, number and issuing district

(3) Shri , scribe, residing at , Citizenship/Passport or similar other details, number and issuing district (if certificate, specify)

This Power of Attorney is written at

Date:

Schedule-14

(Relating to Sub-section (3) of Section 180)

Form of Summons to be issued in the name of a Witness

Summons issued from Court/Office

In the name of , residing at

In the case of wherein is the Plaintiff and is the Defendant, since has named you as a witness and it is necessary to examine you and record your deposition, you are hereby required to appear in this Court at o'clock in the morning on the day of the month of Vikram Samvat year If you fail to appear, action shall be taken according to law.

Of the officer issuing the Summons, -

Signature :

Name :

Position :

Date :

Seal of Court/Office

Schedule-15

(Relating to Sub-section (5) of Section 182)

Amended by the notice published in the Nepal Gazette dated 2076.04.20. Form of Record (Panchapatra) of Examination of Witness through Audio-Visual Communication (Video Conference)

By the order dated of Honourable Judge Shri of Court, in the case of wherein is the Plaintiff and is the Defendant, the witness of the Plaintiff/Defendant, residing at , was examined through audio-visual communication (video conference) in the presence of us, the persons mentioned below, and this is true and correct. Name, surname and residence of witness giving deposition :

Place where the witness appeared for audio-visual communication :

Name, surname and signature of the Plaintiff or his/her representative :

Name, surname and signature of the Plaintiff or his/her legal practitioner (Government Attorney in case of government plaintiff case) :

Name, surname and signature of the Defendant or his/her representative :

Name, surname and signature of the Defendant's legal practitioner, if any :

Name, surname and signature of the technical employee, if assistance taken :

Name, surname and signature of the court employee conducting the deposition through audio-visual communication :

Dated this day of month of Vikram Samvat year , auspicious. Note:

(1) The concerned Judge must certify the heading of this record of examination of witness through audio-visual communication.

(2) The electronic copy of the deposition made through audio-visual communication shall be sealed, signed/thumb-printed by the present parties/representatives/theirs legal practitioners and the employee, recorded and attached to the case file. Schedule-16

(Relating to Section 184)

Form of Oath to be taken by Witness

I, , take oath in the name of God / affirm with truthfulness that in the case of wherein is the Plaintiff and is the Defendant, as a witness for the Plaintiff/Defendant, I shall depose all true facts that I have seen, known and heard. I shall not conceal or falsify anything, and I shall give correct answers to all questions asked by the Court and the parties to the case to the best of my knowledge, sight and hearing. If found false, I agree to action according to law. Signature of person taking oath

Date :

The witness has taken oath before me. Signature of Judge

Date :

Schedule-17

(Relating to Sub-section (4) of Section 187)

Form of Deposition of Witness

Case : Case No. :

Deposition given by , witness for the Plaintiff/Defendant , in the bench of Honourable Judge of Court.

Questions and Answers

Questions asked by the Court

1. Please state your name and your parents' names. Answer
2. Please state your age, occupation and address. Answer
- 3.

Question Answer Examination by the concerned party/his legal practitioner 4. Question Answer 5. Question Answer (If the concerned party or his legal practitioner does not ask any question, the Court shall ask necessary questions.) Cross-examination by the other party/his legal practitioner 6. Question Answer 7. Question Answer Re-examination by the concerned party/his legal practitioner 8. Question Answer Questions asked by the Court 9. Question Answer 10. The deposition you have given is read out to you. Please state whether it has been recorded as you said. Answer 11. This deposition is correctly recorded as I have stated. If found false, I agree to action according to law. In the presence of 1. Signature/thumbprint (concerned party) 2. Signature/thumbprint (other party) Signature of the person giving deposition Dated this day of month of Vikram Samvat year , auspicious. Schedule-18 (Relating to Sub-section (2) of Section 189) Form of Commission Case : Case No. : Commission sent to the name of , witness for the Plaintiff/Defendant , in the case of wherein Plaintiff and Defendant , from the bench of Honourable Judge of Court. Questions and Answers asked by the Court 1. Please state your name and your parents' names. Answer 2. Please state your age, occupation and address. Answer 3. Other questions sent by the Court (questions asked based on the petition, if any, filed by the concerned party) (a) (Question) Answer 4. Details of examination, cross-examination or re-examination conducted in the presence of the concerned party/his legal practitioner, if any: (a) (Question) Answer (b) (Question) Answer 5. This commission is correctly recorded as I have stated. If found false, I agree to action according to law. In the presence of 1. Signature/thumbprint (concerned party) 2. Signature/thumbprint (other party) Signature of the person giving deposition Dated this day of month of Vikram Samvat year , auspicious. Schedule-19 (Relating to Sub-section (1) of Section 198) Form of Judgment Court Bench Honourable Judge Judgment Case No. : Registration/Code No. : Decision No. : Plaintiff: , son/daughter of , husband/wife of , aged years, residing at Ward No. , Municipality/Rural Municipality, District Vs. Defendant: , son/daughter of , husband/wife of , aged years, residing at Ward No. , Municipality/Rural Municipality, District Case : Plaintiff's Witness : Defendant's Witness : Evidence : Evidence : Heard by the Court Witness : Evidence : Facts Section 1. Summary of case facts including details: Content of Plaintiff's claim: Main content of Defendant's reply: Evidence presented by Plaintiff and Defendant: Decision Section 2. Issues to be decided: 3.

Main points of legal practitioner's arguments or submission notes, if submitted: 4. Court's decision, its basis and relevant law: Disposition Section Matters relating to execution of judgment (Court fees, damages, compensation, etc.): Matters relating to appealability or non-appealability: Other necessary matters: Full name and signature of Judge Employee assisting in preparing the judgment Name : Judgment date : Date of certification of judgment : Court seal Schedule-20 (Relating to Sub-section (3) of Section 200) Form of Appeal Summons with Notice of Judgment / Form of Notice of Judgment Appeal Summons with Notice of Judgment / Notice of Judgment issued from Court/Office in the name of residing at In the case of wherein Plaintiff and Defendant , a judgment was passed by this Court/Office on date , confirming the Plaintiff's claim / rejecting the Plaintiff's claim / dismissing the Plaintiff's claim. If you are not satisfied with the said judgment, you may appeal to the Court within days from the date of receipt of this summons or from the date of affixation at the doorstep. If you fail to appeal within the stipulated period and allow the time to lapse, the case shall be dealt with according to law. You shall have no further right to complaint thereafter / This notice is sent for information. Of the officer issuing the Appeal Summons / Notice of Judgment, - Signature : Name : Position :

Date : Schedule -21 (Relating to Sub-section (1) of Section 208) Form of Appeal Petition (To be filled by Court/Office) Registration No. Registration Date : Appeal Petition filed by Appellant: , aged years, residing at (Plaintiff/Defendant) (If there are more than one Appellant, mention details for each Appellant accordingly.) Vs. Respondent: , aged years, residing at (Plaintiff/Defendant) (If there are more than one Respondent, mention details for each Respondent accordingly.) Case Judge and Court/Office that passed the judgment: Date of judgment: Case file number of judgment: Whereas a judgment was passed by the aforementioned Judge and Court/Office in the above case in which I/we are a party, in the following manner on the following points, and being dissatisfied with that judgment, having received the notice of judgment on (mention date), I/we file the following appeal. 1. Brief facts of the case: 2. Brief details of the judgment: 3. Basis taken in passing the judgment: 4. Reasons for appeal and refutation of the basis of the judgment: (a) (b) (c) 5. Grounds of appeal and legal basis supporting them: 6. Court fees and other charges applicable for the appeal: 7.

Other necessary matters, if any: (a) (b) (c) 8. Documents to be attached with the appeal: (a) Copy of the judgment, (b) Court fees and other charges, (c) Copies of any evidence, if any. 9. The contents written herein are true and correct; if found false, I/we shall be liable to bear the consequences according to law. Signature of Appellant and seal of incorporated body, if any : Date : Note: When submitting an appeal petition on behalf of an incorporated body, the name and address of such body and the name, surname and position of the person authorized to appeal on behalf of such body must be mentioned. Schedule-22 (Relating to Sub-section (1) of Section 214) Form of Notice to be issued calling the Respondent Court/Office Case No. of the year VS 20 Appellant Plaintiff/Defendant Vs. Respondent Plaintiff/Defendant Fifteen-day Amended by the notice published in the Nepal Gazette dated 2075.05.01. Notice issued in the name of , son/daughter/husband/wife of , aged years, residing at Ward No. , Rural Municipality/Municipality, District. As per the order dated of this Court (brief content of the order), a copy of the said order is enclosed and this notice is sent for your information. You are required to appear in person or send your legal practitioner or representative according to law in this Court/Office within Amended by the notice published in the Nepal Gazette dated 2075.05.01. fifteen days excluding the time for journey, along with your evidence and proof in the said case. Otherwise, action shall be taken according to law in this matter. This notice is issued on this day of month of Vikram Samvat year , under the seal of the court and my signature. (Seal of Court) As per order Signature Amended by the notice published in the Nepal Gazette dated 2075.05.01. Amended by the notice published in the Nepal Gazette dated 2076.04.20. Schedule-23 (Relating to Sub-section (4) of Section 215) Form of Appellate Judgment Court Single/Joint Bench Honourable Judge Judgment Case No. Registration/Code No. Appellant: , son/daughter of , husband/wife of , aged years, residing at Ward No. , Municipality/Rural Municipality, District (Plaintiff/Defendant) Vs. Respondent: , son/daughter of , husband/wife of , aged years, residing at Ward No. , Municipality/Rural Municipality, District (Plaintiff/Defendant) Case : Court/body that passed judgment at first instance/appellate level: Date of first instance judgment: Date of appeal filed: Facts Section 1.

Brief facts of the case: (State facts of the case, first instance judgment and content of appeal) 2. Order if the Respondent was called: (State brief content) 3. Details of evidence if examined: (State brief content) Decision Section 4. Grounds of appeal and issues to be decided by the Court (to be stated point-wise): (a) (b) 5. Court's decision, its basis and relevant law: 6. Other necessary details: Disposition Section 1. Matters relating to execution of judgment (Court fees, damages, compensation etc.): 2. Matters relating to appeal: 3. Other necessary matters: (Full name and signature of Judge) (Full name and signature of Judge) Employee assisting in preparing the judgment Name : Judgment date : Date of certification of judgment : Court seal Schedule-24 (Relating to Sub-section (5) of Section 235) Form of Summons issued for the purpose of

execution of judgment requiring a party to appear Fifteen-day Amended by the notice published in the Nepal Gazette dated 2075.05.01. Summons issued from District Court in the name of , son/daughter/husband/wife of , residing at Ward No. , Rural Municipality/Municipality, District Whereas in the case of wherein is the Plaintiff and is the Defendant, a final judgment was passed by Court on date directing (briefly state the content of the final judgment). This summons is issued for the purpose of execution of that judgment to secure your appearance. You are required to appear in person or appoint and send your legal practitioner or representative in this Court within Amended by the notice published in the Nepal Gazette dated 2075.05.01.fifteen days excluding the time for journey from the date of receipt of this summons or from the date of its lawful affixation. If you fail to appear in Court within the stipulated period, action shall be taken according to law. Of the concerned employee, - Signature : Name : Position : Dated this day of month of Vikram Samvat year , auspicious. Schedule-25 (Relating to Sub-section (9) of Section 238) Form of Summons issued for opening the lock of a house/shop to be delivered in execution Seven-day Summons issued from District Court in the name of , son/daughter/husband/wife of , aged years, residing at Ward No. , Rural Municipality/Municipality, District Whereas in the case of wherein is the Plaintiff and is the Defendant, a final judgment was passed by Court on date for delivery of possession.

When a bailiff was deputed by this Court to deliver possession, the house/shop built on Plot No. , Ward No. , Rural Municipality/Municipality, District was found locked, and since you, the owner of the said house/shop, did not appear to open the lock, this seven-day summons is affixed on the house/shop to be delivered. You are required to open the lock of the said house/shop within Amended by the notice published in the Nepal Gazette dated 2075.05.01.seven days from the date of affixation of this summons. If the lock is not opened within that period, a bailiff from the Court shall come, open the lock, and deliver possession of the said house/shop. You shall have no right to any complaint in this matter thereafter. Of the concerned employee, - Signature :

Name :

Position :

Dated this day of month of Vikram Samvat year , auspicious. Schedule-26**

(Relating to Sub-section (2) of Section 241)

Form of Summons to be issued in the name of a co-sharer who fails to appear for partition of share

Fifteen-day Summons issued from District Court in the name of , son/daughter/husband/wife of , aged years, residing at Ward No. , Rural Municipality/Municipality, District

Whereas in the case of wherein is the Plaintiff and is the Defendant, a final judgment was passed by Court on date for partition of share. In accordance with that judgment, other co-sharers are present in this Court for the purpose of partitioning the share, but you have not appeared. Therefore, this summons is issued for you to appear to receive your share after partition according to law. You are required to appear in person or appoint and send your representative or legal practitioner in Court within fifteen days excluding the time for journey from the date of receipt of this summons or from the date of its lawful affixation. If you fail to appear, the share shall be partitioned and allotted among all co-sharers including you at one go. If you do not appear, you shall not be entitled to make any kind of complaint later that the share was partitioned without including you, or that you received a bad or inferior share, or that there was a shortage or